



Ordinary Meeting

Tuesday, 25 February 2020

ATTACHMENTS UNDER SEPARATE COVER

**CL02 Adoption of Plan of Management
Olympic Park - Lot 5 Section 54 DP 758476**



ATTACHMENTS UNDER SEPARATE COVER

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15 January 2020

Mr Brett Stonestreet
General Manager
Griffith City Council
PO Box 485
Griffith NSW 2680

Dear Brett

RE: SUBMISSION – OLYMPIC PARK DRAFT PLAN OF MANAGEMENT

I refer to the Draft Plan of Management (PoM) for Olympic Park. There are a number of minor errors that require correction before adoption and clarification is suggested on several points.

1. Page 6 – introduction

Minor typographical error – a space between the comma and word ‘a’ is required after Murrumbidgee Irrigation Area, a significant food bowl....

2. Page 13 – Section 4.1 Land Zoning

The draft PoM states:

Under the Griffith City Council Local Environmental Plan 2014 (GLEP), the Reserve in total is zoned B2 – Local Centre (see Figure 3).

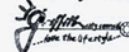
Further, after the objectives, the draft PoM states:

Figure 3 shows the Reserve is zoned B2 - Local Centre bounded in the west by RE1 Public Recreation, and to the north by R1 General Residential.

Reserve No 85064 contains several parcels of land being Lots 19 and 20 Section 7 DP 758476 (known as Banna Park) and allotments 5 and 7 Section 54 DP 758476 (known as Olympic Park).

The zoning of Olympic Park is both RE1 (Public Recreation) being Lot 7 Section 54 DP 758476 and B2 (Local Centre) being Lot 5 Section 54 DP 758476.

Griffith City Council



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Figure 1 - Griffith LEP extract from NSW Legislation website

Action: It is recommended that this part of the draft Plan of Management be amended to read:

Under the Griffith City Council Local Environmental Plan 2014 (GLEP), that part of Reserve 85064 consisting of Lot 5 Section 54 DP 758476 is wholly zoned B2 – Local Centre (see Figure 3).

and

Figure 3 shows that part of the Reserve consisting of Lot 5 Section 54 DP 758476 is zoned B2 - Local Centre bounded in the west by RE1 Public Recreation, and to the north by R1 General Residential.

3. Page 17 - Section 5 - The Physical Environment

Subsection 5.1 Topography, Hydrology and Drainage

The reserve is flat, lies within the Murrumbidgee catchment and slopes very gently towards the south. Local run off drainage from the Reserve eventually accesses Murrumbidgee River, initially via street drains and constructed waterways....

The subject land is in the Mirrool Creek catchment and drains to the Murrumbidgee Irrigation facility known as Barren Box Storage, not to the Murrumbidgee River per se.

Under the image Figure 4, it states:

Note that there are no drainage works such as sewer lines, or any other associated works on Lot 5.

Action: Amend as follows:

The Reserve is flat, lies within the Main Drain J catchment and slopes very gently towards the south. Local run off drainage from the Reserve eventually accesses Murrumbidgee Irrigations water storage facility – Barren Box Storage, initially via street drains and constructed waterways. ...

and

Note that there are no drainage works or sewer lines, or any other associated infrastructure within Lot 5.

4. Page 21 – Section 8 Reserve Assessment

Minor typographical error in the first sentence under Section 8.1:

"Other than a several mature trees..."

Action: Amend to read

Other than several mature trees...

5. Page 25 Section 10 Objectives, Classification and Category of Land

Management Objectives lists various uses that the multi-purpose centre may be put to, a typographical error – Children's Day *Car* Centre.

Action: Amend to Children's Day Care Centre.

6. Page 36 Section 13 Implementation Plan

Management Objectives	Management Strategies	Actions	Performance Evaluation (how they will be assessed)
GENERAL COMMUNITY USE			
To promote, encourage and provide for the use of the land, and to provide facilities on the land, to meet the current and future needs of the local community and of the wider public: in relation to public recreation and the physical, cultural and intellectual welfare or development of	A. Complete essential works in accordance with required approvals.	- Engage a suitably qualified consultant to design and construct a new accessible 2-storey multipurpose centre. - Obtain development consent for the construction of the multipurpose centre, and associated	- Contract awarded for construction of multipurpose centre. - Development consent obtained for multipurpose centre. - Multipurpose centre constructed and occupation certificate obtained. - All new works are completed in accordance with works plans. - General Community Use area has attracted new holders and hirers. - Feedback from holders, hirers and other users is positive. - All new tenures for occupation are compliant with Council's procurement requirements, relevant council policies and relevant legislation including the <i>Native Title Act 1993</i>.

individual members of the public, and		<i>carparking and landscaping.</i> 3. <i>Construct the multipurpose centre in accordance with development consent.</i> 4. <i>Issue new tenures for occupation of the multipurpose centre in accordance with Council's procurement requirements, relevant council policies and relevant legislation including the Native Title Act 1993</i>	
---------------------------------------	--	--	--

This table states that development consent and a construction certificate are required for the construction of major works on trust managed land. This path for construction is not the only applicable pathway, as development on the Reserve can be undertaken through either Part 4 or Part 5 of the Environmental Planning and Assessment Act, particularly under Section 65 of State Environmental Planning Policy (Infrastructure) 2007.

SEPP Infrastructure enables development without consent, which means that a development application does not have to be lodged for consent authority approval, but a review of environmental factors or environmental impact assessment still has to be undertaken prior to construction.

Action: Amend table as follows:

Under Actions:

2. *Determine the appropriate Planning mechanism for the construction of the multipurpose centre, and associated carparking and landscaping under either Part 4 or Part 5 of the Environmental Planning & Assessment Act, 1979.*
3. *Construct the multipurpose centre in accordance with the issued determination under either Part 4 or Part 5 of the Environmental Planning & Assessment Act.*

Performance Evaluation (how they will be assessed)

- *Determination issued for multipurpose centre.*

- ***Multipurpose centre constructed and occupation certificate obtained if determination is issued under Part 4 of the Environmental Planning & Assessment Act, 1979.***

7. Page 45 - Appendix Two - State Environmental Planning Policies which are relevant to the Olympic Park

Third paragraph which states:

Clause 65 of the SEPP (Infrastructure) provides that Development for any purpose may be carried out without consent on Crown managed land, by or on behalf of a Crown land manager of the land if the development is for the purposes of implementing a plan of management adopted for the land in accordance with the Local Government Act 1993. Further, any of the following development may be carried out by or on behalf of a council without consent on a public reserve under the control of or vested in the council:

This would be better as two paragraphs as the second sentence then provides a list of other development which does not require consent.

Action: make this sentence two paragraphs:

Clause 65 of the SEPP (Infrastructure) provides that Development for any purpose may be carried out without consent on Crown managed land, by or on behalf of a Crown land manager of the land if the development is for the purposes of implementing a plan of management adopted for the land in accordance with the Local Government Act 1993.

Further, any of the following development may be carried out by or on behalf of a council without consent on a public reserve under the control of or vested in the council:

Should you require further information please contact me on (02) 6962 8134.

Yours sincerely



DAPHNE BRUCE
CORPORATE PROPERTY OFFICER



Report of Public Hearing

Recategorisation of Lot 5 Section 54 DP 758476

Part of Olympic Park,
Olympic Street and Ulong Lane Griffith

For: Griffith City Council

Owner: The State of NSW

P O BOX 1258 NOWRA NSW 2541
PH: 0429 05 7575
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Introduction

This report provides details of a public hearing held at the Council Chambers of Griffith City Council, Griffith on Wednesday 22 January 2020 concerning the reclassification of one (1) parcel of public land from 'Park' to 'General Community Use' through the preparation of a Plan of Management for Lot 5 DP Section 54 DP 758476, part of Public Reserve 85064, known as Olympic Park.

Olympic Park is 'Community Land' on a Crown Reserve owned by the State of NSW and managed by Griffith City Council; all community land must have a Plan of Management prepared for it to identify the important features of the land, how Council will manage the land and how the land may be used or developed.

Under the Crown Land Management Act 2016 the land has the reserve purpose of 'Public Recreation' & 'Community Purposes'. Further, under the Local Government Act legislation community land must further be 'categorised' as one of the following:

- Natural Area – further categorised as:
 - Bushland
 - Wetland
 - Watercourse
 - Escarpment
 - Foreshore
- Sportsground
- Park
- Area of cultural significance
- General community use
 - Olympic Park currently has the categorisation of 'Park'
 - The Plan of Management for Olympic Park is re-categorising Lot 5 Section 54 DP 758476 as 'General Community Use'
 - Categorising the land as 'General Community Use' will permit the construction of a Multi-Purpose Community Centre on the land whereas the category of 'Park' will not permit this type of construction to occur.

Council may reclassify public land from 'park' to 'general community use' by way of a Plan of Management. Where this is the case, a public hearing must be held and a report provided to Council that contains details of the submissions made to the public hearing and recommendations. The public hearing must be carried out in accordance with relevant provisions of the Local Government Act 1993 and Crown Land Management Act, 2016.



1. Recategorisation

The Plan of Management seeks to recategorise Lot 5 Section 54 DP 758476, part of Olympic Park (Crown Reserve 85064) from 'Park' to 'General Community Use'. This recategorization will allow for the construction of a multipurpose community centre, which cannot be constructed on land categorised as 'Park'.

Section 36I Local Government Act - **Core objectives for management of community land categorised as general community use**, states:

- are to promote, encourage and provide for the use of the land, and to provide facilities on the land, to meet the current and future needs of the local community and of the wider public—
- (a) in relation to public recreation and the physical, cultural, social and intellectual welfare or development of individual members of the public, and
- (b) in relation to purposes for which a lease, licence or other estate may be granted in respect of the land (other than the provision of public utilities and works associated with or ancillary to public utilities).

Part of the recategorization process requires a Public Hearing to be held under Section 40A of the Local Government Act, post exhibition of the draft Plan of Management for Lot 5 – Olympic Park. The date and time of the public hearing was publicly notified on both Council's website and in the local press – The Area News for a period of 28 days, ending on 3 January 2020, with a further 14 days provided for the making of submissions, which closed on 17 January 2020.

2. The Public Hearing

The public hearing was held in the Council Chambers of Griffith City Council, Griffith on 22 January 2020. The notice of the public hearing is appended to this report as Attachment A.

Pursuant to Section 47G of the Local Government Act 1993, the person presiding at the hearing, Miss Kerry Rourke, of Planscapes Town Planning Consultancy, declares that she:

(a) is not a Councillor or employee of Griffith City Council;

(b) and has not been a Councillor or employee of Griffith City Council at any time during the 5 years before the date of her appointment as chair for the public hearing.

Section 47G of the Act requires the person presiding to report on the result of the hearing.

Section 47G(3) of the Act, also requires that not later than 4 days after Council has received this report concerning the public hearing, Council must make a copy of the report available for inspection by the public at a location within the Council area.

The hearing at Griffith City Council was attended by Miss Kerry Rourke as Chair /Adjudicator, and the following Griffith City Council staff:

- Mr Brett Stonestreet - General Manager
- Mr Phil Harding – Director Sustainable Development
- Mrs Daphne Bruce – Corporate Property Officer
- Mr Nathan Beer – Project Planner as an observer.

Apologies were received from:

- Councillor Deb Longhurst;
- Councillor Christine Stead;
- Councillor Dino Zappacosta;
- Councillor Glen Andreazza;
- Councillor Simon Croce;
- Councillor Doug Curran; and,
- Councillor Mike Neville

In attendance, there were four members of the public present:

- Mr Les Wade;
- Mr William Wade;
- Ms Melva Robb; and,
- Ms Sherene Blumer

Site inspections were carried out on the day prior to the conduct of the public hearing.

The hearing commenced at 5.30 pm with introductions, an explanation of process and an outline of the purpose of the public hearing in regard to the changing of the categorisation of Olympic Park, by the Chair.

3. Issues raised at the Public Hearing

Four members of the public attended the public hearing and submissions were called for. In addition to the one written submission that had been provided to the Chair prior to the meeting; one member of the public made a submission to the hearing.

The matter raised by the submitter at the hearing pertained to the future multi-purpose community centre and not strictly to the plan of management per se. The submission related to the ability of the land as general community use, to be used for the construction of an office block or for the community building once constructed to be used by a private entity. The submitter stated that the future use of the building required clarification through this plan.

Following submission the Chair reiterated that the public hearing is an opportunity for interested persons to make a submission which is then considered by the Chair when preparing a report and making recommendations to Council. The public hearing is not a forum for negotiation, decision-making or for judgements to be made.

The public hearing report is considered by Council in the same way as written submissions to the planning proposal when deciding whether to proceed with the amendment to the LEP or to make any changes to the amendment.

The hearing concluded at 5.57 pm.

4. Conclusion

The conduct of the public hearing satisfied the procedural requirements of the *Local Government Act 1993*. No actions arise in response to the public hearing.

The recategorization of Lot 5 Section 54 DP 758476 from Park to General Community Use is supported.

It is noted that the written submission received was from Council staff correcting several typographical errors, also recommended clarifying several sections pertaining to the pathways available to achieve the future infrastructure construction. This includes both a development application under Part 4 of the Environmental Planning and Assessment Act, and under Part 5 of the Act where the additional provisions of State Environmental Planning Policy (Infrastructure) 2007 permit development of the proposed multi-purpose community centre to be development without consent.

The verbal submission heard at the hearing was more in line with questions relating to the future use and management of the multi-purpose community centre rather than the content of the Plan of Management per se.

It is noted that the Plan of Management states, at Section 11.3 (page 28):

The Local Government Act 1993 provides that tenures (leases, licences, or any other estates) or easements may be granted over all or part of community land.

Tenures may be held by:

- *Community organisations and sporting clubs, or*
- *By private / commercial organisations or*
- *Individuals providing facilities and/or services for public use.*

This information provides the relevant response to the verbal submission and, in my opinion, needs no further clarification. The detail on occupancy or tenancy of the future multi-purpose community centre is not a matter for this Plan of Management.

5. Recommendations

As no submissions objecting to the exhibited plan of management, the following recommendations are made in response to the matters raised during the public hearing and as a result of the written submission:

- 1 the Plan of Management should be amended in relation to the matters raised in the written submission to correct typographical errors and clarify the development pathways.
- 2 The recategorization of Lot 5 Section 54 DP 758476 from Park to General Community Use should proceed and be adopted.

Kerry Rourke MPIA
Principal
Planscapes Town Planning Consultancy
11 February 2020

Annexures

Attachment A: Public Notices

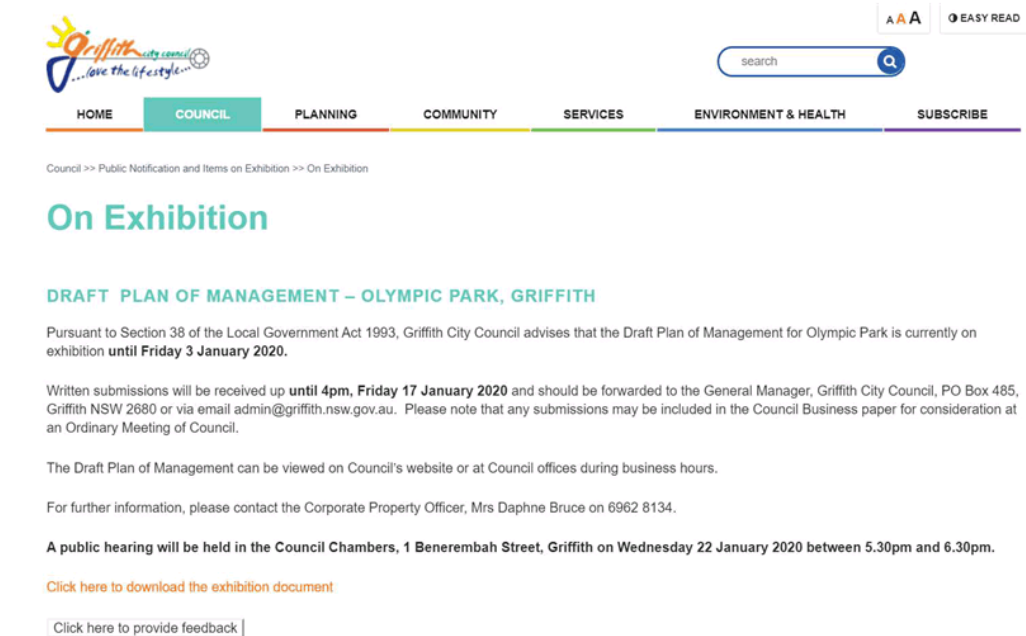


Figure 1 - Griffith City Council Website - www.griffith.nsw.gov.au/cp_themes/default/page.asp?p=DOC-PEK-04-88-50



Figure 2 - The Area News: 6 & 13 December 2019



~~DRAFT~~ PLAN OF MANAGEMENT

Olympic Park Griffith



~~November 2019~~ February 2020



Plan of Management Report prepared by
Lands Advisory Services Pty Ltd
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Newcastle NSW 2300



Email: enquiries@landsas.com.au

October 2019

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EXECUTIVE SUMMARY

Olympic Park is a small area of land, which is well located amidst the significant business, social and cultural precincts of the City of Griffith in south western New South Wales. Currently managed as park land, it represents considerable value to any creative plans to cater for and add context to the needs of a flourishing community, integral to its future health and lifestyle.

Olympic Park is Community land on a Crown reserve owned by the State Government and managed by Griffith City Council for the benefit of the community.

The intention of this Plan of Management is to provide Council with a framework that enables decisions in regard to part of Olympic Park, to be made on an informed, consistent and equitable basis. The Plan meets all of the requirements of the *Local Government Act 1993* as amended by the *Local Government Amendment (Community Land Management) Act 1998*.

The land at Olympic Park is categorised in this plan of management, as:

- General Community Use

A description of this land as it exists at the Reserve is provided. The current use patterns, built and natural assets and their condition, emerging trends, constraints and influences, have been considered in this Plan of Management. Appropriate management objectives and actions, as well as an effective management structure and communication strategy for successful implementation are key outcomes provided by the Plan.

This Plan proposes the construction of a new Multi-Purpose Centre to facilitate improved—and coordinated community services—in mental health, disability support, education and other much needed support for Griffith.

This Plan is presented in two principal sections being the site description (A), which describes the constraints of the site, and the fundamental components of the Plan (B), which describes what is planned for the site's future.



PART A – THE SITE

1 INTRODUCTION

This Plan of Management is for part of Olympic Park in Griffith.

Olympic Park lies in the heart of the City of Griffith, which is located in the rural and irrigable landscape of the Riverina area, of New South Wales, 560 km south west of Sydney and 450 km north of Melbourne. Proclaimed as a city in 1987, Griffith has a population of approximately 18,000 (excluding surrounding areas), and is the regional service centre for the Murrumbidgee Irrigation Area, a significant food bowl for the production of rice, citrus, stone fruits and many other high value crops.

A unique feature of the City of Griffith is that it was designed by the American architect Walter Burley Griffin who also designed Canberra and nearby Leeton, with uniquely styled geometric street patterns and broad radiating avenues. These attractive designs are well featured close to Olympic Park in the precincts bounded by Kookora Street to the west, and Palla Street and Binya Avenue to the immediate north of the Reserve.

Olympic Park is well located in the heart of Griffith City (see Figure 1 locality map). It is bounded by Olympic Street on its southern boundary and a rail corridor to its north. A blind access road, Ulong Lane, runs along the Reserve's eastern boundary off Olympic Street, and on its west, the Reserve is bounded by the continuation of park land.

Figure 1 - Locality Diagram





Notable, is the easy walking access from the Reserve to a number of significant commercial, recreational and social facilities. East of the Reserve is the rail station, the public library, post office, the Visitor Centre, banking and an accommodation precinct; to the west, the Griffith Regional Theatre and city garden/ park precinct; and to the north west, the Aquatic Leisure Centre, a medical centre and churches.

Olympic Park lies within a reserve (Reserve 85064) for *Public Recreation* notified on 23 October 1964 with additional purpose of *Community Purposes* notified on 15 July 2011. Olympic Park Reserve is currently used and managed as a park. Reserve 85064 also includes Banna Park to the west, between Olympic Street and Banna Avenue.

This Plan of Management (PoM) has been prepared in order to achieve a balanced, responsible and ecologically sustainable use of the land and to ensure that it addresses the needs of the local neighbourhood, the broader community, and the environment. It has been prepared to meet the requirements of the *Local Government Act* (LGA), as amended by the *Local Government Amendment (Community Land Management) Act 1998*.



2 LEGAL FRAMEWORK

2.1 Public Land

This land, briefly described above, is Crown land managed by Griffith City Council.

Crown land is owned by the State of New South Wales for the benefit of all persons. Local Government Authorities manage Crown land on behalf of the State, as Crown Land Managers, under Division 3.4 of the *Crown Land Management Act 2016* (CLMA). The CLMA provides that Council should manage the land under the *Local Government Act 1993* (LGA).

Under the LGA, all public lands must be classified as either Community, or Operational land. Reserve 85064, shown in Figure 2 has been classified 'Community' land.

Figure 2 - Land within Reserve 85064



The land included in this Plan of Management is edged in red

The purpose of the classification is to clearly delineate which land should be kept for use by the general public (Community) and which land need not be kept for that purpose (Operational). The major consequence of the classification is that it determines the ease or difficulty by which the land may be alienated by sale, lease or other means. Community land would ordinarily comprise land such as a sportsground, hall, public park etc.,¹ and Operational land would consist of land which facilitates carrying out of a public service, such as works depots, or land held as a temporary asset or investment. Community land:

¹ See the note to Chapter 6, Part 2 of the *Local Government Act 1993*.



- cannot be sold
- cannot be leased, licensed or any other estate granted over the land for more than 21 years
- must have a PoM prepared for it.

2.2 Plans of Management

The LGA requires that Council prepare a Plan of Management (PoM) in conjunction with the community to identify the important features of the land, clarify how Council will manage the land and how the land may be used or developed. Until a PoM for Community Land is adopted, the nature and use of the land cannot be changed. To change this, the Plan must be revised.

The *Crown Land Management Act 2016* also requires that PoMs are to be created over Crown land which is managed by local government as Crown land manager. For the purposes of Section 3.23 this PoM is a first plan.

Council will undertake the required process as per Section 36 of the LGA and Section 3.23 of the CLMA for this PoM.

Specifically, the LGA requires that a Plan of Management must identify:

- Category of the land.
- Objectives and performance targets of the plan with respect to the land.
- Means by which the council proposes to achieve the Plan's objectives and performance targets.
- Manner in which the council proposes to assess the objectives and performance targets.
- Describe the condition of the land, and any buildings or other improvements on the land, as at the adoption of the Plan.
- Describe the use of the land and any such buildings or improvements as at adoption.
- Specify the purposes for which the land, and any such buildings or improvements, will be allowed to be used.
- Specify the purposes for which any further development of the land will be permitted, whether under lease or licence or otherwise.
- Describe the scale and intensity of any such permitted use or development.



2.3 Categorisation and Objectives

As required by legislation for the purposes of the PoM, community land is categorised as one of the following:

- Natural Area
 - Bushland
 - Wetland
 - Watercourse
 - Escarpment
 - Foreshore
- Sportsground
- Park
- Area of Cultural Significance
- General Community Use

Once categorised, community land is also subject to specified objectives which are outlined in the LGA, and in this PoM (see Section 9).

2.4 Types of Plans

The LGA allows a PoM to cover one or multiple parcels of land.

Where multiple parcels of land are covered in one plan (Generic Plans), the LGA specifically states what needs to be included. Where a PoM covers one parcel of land (Specific Plans), like this Plan, there is greater detail on what has to be prescribed in the Plan. A Generic Plan sets the framework of how the land is to be managed. A Specific Plan clearly outlines precise management proposals.

PoMs for community land are periodically reviewed to enable changing social, economic and ecological conditions to be taken into account and consequently amendments to the Plan may occur.

This PoM for the Griffith City Council's Olympic Park will be its first.



3 SITE DESCRIPTION

3.1 Land Parcels

This Plan of Management covers Lot 5 Section 54 in Deposited Plan (DP) 758476 (see the area bounded with red in **Figure 2**) and lies within the Griffith City Local Government Area, in the Parish of Jondaryan, County of Cooper.

The property address of the Reserve is 1 Olympic Street Griffith 2680,

The northern boundary of the PoM is the Hillston - Griffith Railway corridor; the western boundary is a continuation of Olympic Park (into Lot 7 Section 54 DP 758476); the eastern boundary is the (unsealed) Ulong Lane; and the southern boundary is Olympic Street with associated car parking.

The total area of Lot 5 is approximately 1950m².

While not included in this PoM Reserve 85064 also includes the rest of Olympic Park and Banna Park, being Lot 7 Section 54 and Lots 19-20 Section 7 in DP 758476 respectively.

3.2 Ownership and Management

Olympic Park is on Crown land owned by the State of New South Wales. The land is subject to a Reservation for *Public Recreation and Community Purposes* under the *Crown Land Management Act 2016* (CLMA), established on 23 October 1964. The additional purpose of Community Purposes was added to the Reserve on 15 July 2011.

All assets on the Reserve are owned by the State of New South Wales.

Council, as the *Council of the Shire of Wade* was first appointed trustee of the Reserve on 18 December 1964. Griffith City Council was later reappointed on 16 December 1994. Following various legislative changes in the management of Crown land, Griffith City Council is now Crown land manager of R.85064 for the purposes of the CLMA.

Section 3.21 of the CLMA authorises Council to manage the land as if it were public land within the meaning of the *Local Government Act 1993* (LGA). Under the LGA, all public lands must be classified as either Community or Operational land and this land has been classified 'Community' land.

Crown land in Australia is subject to Native title under the *Native Title Act 1993* (Commonwealth). On Crown land Native title rights and interests must be considered unless:

- Native title has been extinguished; or
- Native title has been surrendered; or
- Determined by a court to no longer exist.

Some examples of acts which may affect native title on Crown land or Crown reserves managed by Council include:



- the construction of new buildings and other facilities such as toilet blocks, walking tracks, tennis courts, grandstands and barbecues,
- the construction of extensions to existing buildings,
- the construction of new roads or tracks,
- installation of infrastructure such as powerlines, sewerage pipes, etc.,
- the issue of a lease or licence,
- the undertaking of major earthworks.

When proposing any act that may affect native title on Crown land or Crown reserves the act must be authorised through Part 2 Division 3 of the *Native Title Act 1993 (Cwlth)*.

Figure 3 - Planning Zones





4 PLANNING INSTRUMENTS AND POLICIES

4.1 Land Zoning

Under the Griffith City Council *Local Environmental Plan 2014* (GLEP), that part of the Reserve 85064 consisting of Lot 5 Section 54 DP 758476 is wholly in total is zoned B2 – Local Centre (See Figure 3).

The objectives of the B2 – Local Centre are:

- To provide a range of retail, business, entertainment and community uses that serve the needs of people who live in, work in and visit the local area.
- To encourage employment opportunities in accessible locations.
- To maximise public transport patronage and encourage walking and cycling.
- To ensure that the densities for commercial development reflect the needs of the local community and the capacity of the existing road and transport network.
- To generally conserve and enhance the business centre precincts by ensuring that new development integrates with the district urban scale, character, cultural heritage and landscape setting of those places.
- To enable development of land in this zone for residential purposes if adequate amenity will be provided for residents of residential buildings and the land will not be required for commercial or retail use.

Figure 3² shows that part of the Reserve consisting of Lot 5 Section 54 DP 758476 is zoned B2 – Local Centre, bounded in the west by RE1 Public recreation, and to the north by R1 General Residential.

Activities permitted without consent are:

- Environmental protection works,
- Home –based childcare, and
- Home occupations.

² Figure 3 is sourced from the Department of Planning, Industry and Environment's Planning Portal.



The following activities are permitted with consent:

- Boarding houses
- Centre-based childcare facilities
- Commercial premises
- Community facilities
- Educational establishments
- Entertainment facilities
- Function centres
- Information and education facilities
- Medical centres
- Oyster aquaculture
- Passenger transport facilities
- Recreational facilities (indoor)
- Registered clubs
- Respite day care centres
- Restricted premises
- Roads
- Service stations
- Shop top housing
- Tank-based aquaculture
- Tourist and visitor accommodation
- Any other development not specified in those permitted without consent, or not specified in those that are prohibited.

The following activities are prohibited:

- Agriculture
- Air transport facilities
- Airstrips
- Animal boarding or training establishments
- Bio-solids treatment facilities
- Boat building and repair facilities
- Boat launching ramps
- Boat sheds
- Camping grounds
- Caravan parks
- Cemeteries
- Charter and tourism boating facilities
- Correctional centres
- Crematoria
- Depots
- Eco-tourist facilities
- Electricity generating works
- Exhibition homes
- Exhibition villages
- Extractive industries
- Farm buildings
- Forestry
- Freight transport facilities
- Heavy industrial storage establishments
- Helipads
- Highway service centres
- Home occupations (sex services)
- Industrial retail outlets
- Industrial training facilities
- Industries
- Jetties
- Marinas
- Mooring pens
- Moorings
- Open-cut mining
- Pond-based aquaculture
- Recreational facilities (major)
- Research stations
- Resource recovery industries
- Rural industries
- Rural works' dwellings
- Sewage treatment plants
- Sex services premises
- Storage premises
- Transport depots
- Truck depots
- Vehicle body repair shops
- Warehouse or distribution centres
- Waste disposal facilities
- Water recreation structures
- Water supply systems
- Wharf or boating facilities
- Wholesale supplies.



4.2 Flood Planning

GLEP presents the objectives to considering flood planning in 7.2 (1):

- To minimise flood risk to life and property associated with the use of land.
- To allow development on land that is compatible with the land's flood hazard, taking into account projected changes as a result of climate change.
- To avoid significant adverse impacts on flood behavior and the environment.

Generally, due to its distance from the banks of the Murrumbidgee River, the city of Griffith does not experience significant mainstream flooding, although parts of the city, including this Reserve, are considered *flood prone*.

The flood hazard study completed in 2013³ allocates sub-areas to the CBD catchments for the purposes of identification and management of land units within the report. The *Junction of Wakaden and Ulong Streets* sub-area which contains the Reserve at Olympic Park indicates that at 1% AEP (100-year ARI), Low Flood Hazard and Low Provisional Hazard exists. These low hazard determinations are reflected within Council's Flood Report for Lot 5 which accounts for a 500mm buffer height to habitable building floor height.

4.3 State Environmental Planning Policies

The relevant part of Olympic Park is subject to the State Environmental Planning Policies below. Those that are considered more relevant to the future of the Reserve and this PoM are underlined below and briefly described in **Appendix 2**.

- State Environmental Planning Policy (Affordable Rental Housing) 2009
- State Environmental Planning Policy (Building Sustainability Index BASIX) 2004
- State Environmental Planning Policy (Exempt and Complying Development) 2008
- State Environmental Planning Policy (Housing for Seniors and People with Disabilities) 2004
- State Environmental Planning Policy (Infrastructure) 2007
- State Environmental Planning Policy (Mining, Petroleum and Extractive Industries) 2007
- State Environmental Planning Policy (Miscellaneous Consent Provisions) 2007
- State Environmental Planning Policy No1- Development Standards
- State Environmental Planning Policy No 21 – Caravan Parks

³ Griffith City Council, Griffith Major Overland Flow, Floodplain Risk Management Study and Plan for CBD catchments, WMAWater July 2013.



- State Environmental Planning Policy No 33- Hazardous and Offensive Development
- State Environmental Planning Policy No 36 – Manufactured Home Estates
- State Environmental Planning Policy No 50 –Canal Estate Development
- State Environmental Planning Policy No 55 – Remediation of Land
- State Environmental Planning Policy No 64 – Advertising and Signage
- State Environmental Planning Policy No 65 – Design Quality of Residential Apartment Development
- State Environmental Planning Policy (Vegetation in Non-Rural Areas) 2017.

4.4 Council Policies

Council has developed a number of plans and general policies which have either direct or indirect relevance to planning, management and maintenance of Community Land and Council Reserves. Of particular note;

- | | |
|--|--|
| • Griffith Land Use Strategy Beyond 2030 | • Complaints Management |
| • Griffith Land Use Strategy Plain English Summary | • Community Grant Program |
| • DCP No 19 Mixed Development | • Community Recognition |
| • DCP No 20 Parking (2011) | • Council Services - All Users to be Charged |
| • DCP No 22 Exempt and Complying Development | • Council Signage in Parks, Reserves and Pools |
| • DCP No 25 Public Notification | • Events Policy and Decision Tool |
| • Advertising - Signs | • Legislative Compliance Policy and Procedure |
| • Approvals - Fencing Adjoining Public Land | • Procurement Policy |
| • Asset Management Policy | • Smoke Free Outdoor Areas Policy |
| • Buildings - Distance from the Boundary | • Tender Consideration |

All relevant policies can be found at Council's website at www.griffith.nsw.gov.au.⁴

This PoM is consistent with these plans, strategies and policies.

4.5 Operating Approvals

The Reserve has no operating approvals issued under the LGA.

⁴ The majority of relevant policies appear in the references of this Plan.



5 THE PHYSICAL ENVIRONMENT

5.1 Topography, Hydrology and Drainage

The Reserve is flat, lies within the Murrumbidgee-Main Drain J catchment and slopes very gently towards the south. Local run off drainage from the Reserve eventually accesses Murrumbidgee River Irrigation's water storage facility – Barren Box Storage, initially via street drains and constructed waterways. Drainage of the Reserve is good, assisted by reasonably freely draining soil materials (see soils section).

The following series of photos shows the Reserve at Olympic Park.

Figure 4 - Landform, Aspect and Vegetation



Note that there are no drainage works such as sewer lines, or any other associated infrastructure works on within Lot 5.

5.2 Land Clearing and Modification

The history and the management of this small reserve mean that the original native vegetation is no longer present. It is likely that the original vegetation would have been a grassland interspersed with single or clumps of woody species such as the local *Eucalyptus* which still exist in some areas within the city boundaries, and in the neighbouring rural landscapes.

Currently, the Reserve carries a good cover of naturalised and introduced groundcover suitable for



the current purpose of park, and two single mature trees straddling the northern boundary.

5.3 Soils and Geology

The soils of the Reserve are likely to closely reflect their alluvial floodplain origins. The upper floodplain soils in and around Griffith have been described mainly as red-brown texture contrast soils of considerable depth, known as Red Chromosols (Australian Soil Classification⁵).

Soils in this vicinity occur as well drained dark reddish-brown sandy clay loam topsoil, with a neutral to slightly acid PH (5.0 as measured in the field) overlying significantly more heavily textured reddish-brown medium clay at around 30-35 cm. This soil horizon generally has a PH of 7.0, though deeper in the profile amidst the heavier materials, bands and separate horizons of much lighter textured materials such as silty clays and even sands. Where clays exist at depth, they rarely exceed medium clay in texture, though may show very strong structure and PHs which can be as high as 8.5, and where free lime nodules exist. Overall, drainage of this soil profile is fair to good.

The layering of horizons of greatly different textures (clay to sands etc.,) down the soil profile, and the overall good depth of these soils which often exceed 3.5 m on the flats, supports the colluvial/alluvial floodplain origins of these soils. As the Griffith landscape slopes further to the south towards the Murrumbidgee River and west of the Reserve and Griffith City, soils tend to transition towards a range of more heavily textured cracking dark clays.

Soil profile descriptions recorded in the vicinity of Griffith are available on the NSW Office of Environment website: www.environment.nsw.gov.au/eSpadeWebapp/

5.4 Vegetation and Habitat

Because of the absence of significant woody vegetation at this Reserve (as previously described), the habitat values of Olympic Park are limited.

5.5 Biodiversity

Under the *LGA*, Council has obligations for conservation issues as determined by the *Biodiversity Conservation Act 2016*, and the *Fisheries Management Act 1994*.

The respective 10.7 Certificate contains no notation of any significant biodiversity issues present at Olympic Park. Section 7.3 of the GLEP and the accompanying map (Sheet BIO_004) shows that there is no significant Terrestrial Biodiversity.

5.6 Riparian Land and Watercourses

There are no named creeks or riparian lands on or in the immediate vicinity of Olympic Park.

⁵ The Australian Soil Classification, Revised Ed. RF Isbell 2002; *CSIRO Pub.*



6 THE SOCIAL ENVIRONMENT

6.1 Aboriginal Significance

A search of the Office of the Environment and Heritage AHIMS Web Services (Aboriginal Heritage Information Management System) did not reveal that:

- aboriginal sites are recorded in or near Olympic Park (1 km buffer)
- aboriginal places have been declared in or near Olympic Park (1 km buffer).

The GLEP details no items of known aboriginal archaeological sites, nor places of archeological or heritage significance at Olympic Park.

6.2 Heritage Significance

The relevant 10.7 Certificate indicates that no heritage items and controls exist at Olympic Park. This is supported by the GLEP's Heritage Map (HER_044A).



7 CURRENT USES

Olympic Park has been previously categorised as *Park* under Section 36 of the LGA through the initial categorisation process of Section 3.23 of the CLMA .

The core objectives for land which is categorised as a Park are:

- To encourage, promote and facilitate recreational, cultural, social and educational pastimes and activities, and
- To provide for passive recreational activities or pastimes and for the casual playing of games, and
- To improve the land in such a way as to promote and facilitate its use to achieve the other core objectives for its management.

In conjunction with adjoining lands which comprise part of Reserve 85064 local residents and visitors have ready access to the Reserve and opportunities exist for a range of passive activities including walking, exercising and resting.

Because of the relatively small size of Lot 5 (Olympic Park), and similar facilities nearby in adjoining precincts, there has been no required development of the park with physical infrastructure and landscaping which may enhance the passive uses in this way.



8 RESERVE ASSESSMENT

8.1 Assessment of Infrastructure

Other than a several mature trees, a single rail treated-pine fence which separates traffic from the park on the eastern (Ulong Lane) boundary, and a well maintained and managed turf surface suitable for the current passive recreation, Lot 5 at Olympic Park Griffith has no assets.

The adjoining Lot 7 to the west which essentially provides a seamless continuation of the park, is similarly vegetated, and carries:

- a skate park
- a bicycle training facility
- a children's playground
- a basketball half court.

A ninety-degree car parking facility occupies the Olympic Street road reserve, providing a good access service to the park via road and vehicle.

8.2 Assessment of Management Needs

Management of the Reserve as park requires minimal inputs, restricted to mowing, slashing, gardening and fence maintenance as appropriate.



PART B – THE PLAN

9 A VISION FOR THE LAND

“A more beautiful, vibrant, healthy and sustainable city to experience.”

The Vision Statement for the management of community land at Olympic Park uses the vision statement from Griffith City Council’s *Griffith CBD Strategy*. This PoM considers the statement directly relevant to the future development and management of the Reserve (see below).

9.1 Scoping the Social, Economic and Physical Environment

The objectives outlined for land zoned in GLEP for B2 have been previously presented in 4.1. Those that are considered directly relevant to the future uses and developments at Olympic Park are:

- To provide a range of retail, business, entertainment and community uses that serve the needs of people who live in, work in and visit the local area.
- To encourage employment opportunities in accessible locations.
- To maximise public transport patronage and encourage walking and cycling.
- To generally conserve and enhance the business centre precincts by ensuring that new development integrates with the district urban scale, character, cultural heritage and landscape setting of those places.

Griffith City Council’s broad strategic intent in the management of central city lands is defined through its *Griffith CBD Strategy*⁶ adopted in 2015. This strategy seeks to rejuvenate the city centre, focusing on developing an attractive city that people want to live in, visit more frequently and visit for longer periods.

Broadly, this strategy acknowledged that current planning needs to recognise more strongly Griffin’s original thinking about the design of the city, upholding his ideals of a “walkable city, with wide tree lined boulevards with open space, and quality architecture”.

However, at the time, Griffin would not have been aware of the future of Griffith and surrounds as a strong multi-cultural centre. The robust developing irrigation history has been a contributing factor in attracting residents of many nationalities, in particular Italian, Sikh Indian, Afghan, Pacific Islander and Turk. Today, at least 60% of residents claim at least some Italian heritage. This diverse heritage and customs create a unique cultural tapestry, on which to capitalise through the future planning and use of the city’s community lands, including at Olympic Park.

It is also relevant that the *Griffith CBD Strategy* recommends a compatible plan for Olympic Park

⁶ [www.griffith.nsw.gov.au/Planning/Griffith CBD Strategy](http://www.griffith.nsw.gov.au/Planning/Griffith%20CBD%20Strategy).



which goes some way in addressing the strategy's "identified general lack of diversity of activities in Griffith's centre, which particularly cater for the elderly and youth".

As part of a key recommendation to "design great places in the city-centre, with a variety of activities", the strategy proposes a *Youth Precinct* at the park. This will create "hang-out spaces between recreational activities and promote interaction and socialising".

9.2 Management Directions

Council recognises the significance of the Reserve to the local and regional community and proposes the following management directions:

- To construct a Multi -Purpose Centre which is consistent with the zoning through the GLEP, adopted strategies (eg. *Griffith CBD Strategy*) in line with the current and emerging community needs of residents of both the Griffith City and region, and its many visitors.
- To provide a safe, attractive venue with equitable and convenient access by all people to the services it provides, and which also serves as an important component of a broader integrated and attractive precinct for the use of people from all ages and backgrounds.
- To ensure the spaces and facilities at the Reserve support the ongoing viability of community.
- To capitalise on fund earning opportunities consistent with legislation and policy, such that net operating and capital costs which provide essential services through the management of the Reserve, are reduced.
- To maintain and improve environmental values where present.

The current use as an open space is not ideal given it is adjacent to the railway and is not further required as these facilities are amply available nearby at:

- | | |
|---|---------------------------------------|
| • The adjoining section of Olympic Park | • The Burley Griffin community garden |
| • Banna Park | • CWA Park |
| • Memorial Park | • EW Moore Oval |
| • Kooragee Park | • McKirdy Park |
| • City Park | • Lions Park |



10 OBJECTIVES, CLASSIFICATION AND CATEGORY OF LAND

The Olympic Park at Griffith is classified as Community Land under the *LGA* as amended by the *Local Government Amendment (Community Land Management) Act 1998*.

Under Section 36(4), all Community Land must be categorised as one of the following categories:

- Natural Area - (further categorised as either Bushland, Wetland, Escarpment, Foreshore, Watercourse)
- Sportsground
- Park
- Area of Cultural Significance; or
- General Community Use.

The Core Objectives for all community land categories vary according to the categorisation of the land. All objectives are defined in Sections 36E to 36N of the *LGA* and also appear in Appendix 1, of this PoM.

In accordance with the guidelines set out in the *Local Government (General) Regulation 2005* and Practice Note 1: Public Land Management (Department of Local Government Amended 2000); and the derived management directions and planning principles presented above; land at the Reserve should be categorised as

- **General Community Use**

A categorisation of General Community Use will better reflect the current zone under the GLEP, the reservation purpose following the amendment in 2011 and will facilitate Council's objective to build a community use Multi-purpose Centre.

10.1 General Community Use

Relevant Core Objectives for management of community land categorised as **General Community Use** are to promote, encourage and provide for the use of the land, and to provide facilities on the land, to meet the current and future needs of the local community and of the wider public:

- (a) in relation to public recreation and the physical, cultural, social and intellectual welfare or development of individual members of the public, and
- (b) in relation to purposes for which a lease, licence or other estate may be granted in respect of the land (other than the provision of public utilities and works associated with or ancillary to public utilities).



Management Objective

The area identified as General Community Use will provide a multi-purpose centre for much needed community services including:

- Mental health services:
 - One door Mental Health
 - My Mind Matters
 - Marathon Health
- Volunteer migration services
- Alcoholics Anonymous
- Narcotics Anonymous
- The Griffith Carevan
- Al- Anon
- Narconon
- Debt recovery advice
- Country University services
- Children's Day Care Centre
- Anglicare
- Mission Australia
- Multicultural Disability Advocacy Association of NSW
- Kurrajong Therapy Plus
- Relationship Australia.
- LCN Op-Shop.



11 MANAGEMENT AND DEVELOPMENT OF THE RESERVE

11.1 Reserve Management

Council reserves the right to control the use of the Community Land including Olympic Park. However, to facilitate the establishment of the multipurpose centre, Council intends to:

- Issue a tender to design and construct the multipurpose centre.
- Lease the Centre and / or parts thereof to organisations providing services to the community.
- Create opportunities for community consultation and participation in the planning and development as required.
- Consider and attempt to balance the need for community facilities with the impact development that such a site will have on local businesses and residents.
- Ensure all formal use of the Reserve is authorised through appropriate documentation.
- Consider how use of the site can provide funding for the maintenance of the facilities for the Reserve.
- Facilitate a system whereby enquiries and complaints⁷ from the public can be efficiently and promptly dealt with.

11.2 Permitted Uses and Activities

The Reserve allows controlled access to the facilities which are open to the public.

Permissible Uses

Table 1 lists the permissible uses on the land subject to this Plan of Management with their scale and intensity.

Table 1 – Permissible Uses

Use	Scale	Intensity
Access roads	Limited to the physical constraints of the facility and/or to the requirements of the activity	24 hours a day, 7 days a week
Amenities	Limited to the physical constraints of the facility and/or to the requirements of the activity	24 hours a day, 7 days a week
Alternate energy technology	Limited to the physical constraints of the facility	24 hours a day, 7 days a week
Art and cultural classes and events	Limited to the physical constraints of the facility and/or to the requirements of the activity	24 hours a day, 7 days a week Subject to any Hire Agreement, Tenure and/or Development Application conditions for a specific event

⁷ Complaints in relation to the Reserve will be addressed consistent with Council's *Complaints Management Policy*.



Use	Scale	Intensity
Business Operations	Limited to the physical constraints of the facility	24 hours a day, 7 days a week subject to Tenure or Hire Agreement
Cafe	Limited to the physical constraints of the facility Agreement via tenure or hire agreement	Operating hours of the establishment subject to Council approval
Car parking	Limited to the physical constraints of the facility and/or to the requirements of the activity	24 hours a day, 7 days a week
Playing of games	Limited to the physical constraints of the facility	8.00am – 10.00 pm, 7 days a week subject to Tenure or Hire Agreement
Children's programs and events	Limited to the physical constraints of the facility and/or to the requirements of the activity	8.00am – 10.00 pm, 7 days a week subject to Tenure or Hire Agreement
Community events (fundraising/charity events, special events)	Limited to the hours the facility is booked Agreement via tenure or hire agreement	7 days a week, 8.00am – 10.00pm
Community Services	Limited to the physical constraints of the facility Agreement via tenure or hire agreement	24 hours a day, 7 days a week
Drainage	Limited to the physical constraints of the facility	24 hours a day, 7 days a week
Education Services	Limited to the physical constraints of the facility Agreement via tenure or hire agreement	24 hours a day, 7 days a week
Emergency use	Limited to the physical constraints of the facility and/or to the requirements of the activity	24 hours a day, 7 days a week
Filming and photography (commercial, amateur)	Limited to the physical constraints of the facility and/or to the requirements of the activity	24 hours a day, 7 days a week Subject to Tenure
Landscaping	Limited to the physical constraints of the facility	24 hours a day, 7 days a week
Licensed bar, bistro	Limited to establishments with a liquor licence	Operating hours of the establishment subject to Council approval
Maintenance buildings	Limited to the physical constraints of the facility	24 hours a day, 7 days a week
Paths	Limited to the physical constraints of the facility	24 hours a day, 7 days a week
Personal training	Limited to the physical constraints of the facility	Operating hours subject to Tenure or Hire Agreement
Playing of a musical instrument, or singing, for fee or reward	Limited to the physical constraints of the facility	Operating hours subject to Tenure or Hire Agreement
Private events (i.e. weddings, birthdays)	Limited to the physical constraints of the facility and/or to the requirements of the activity	Operating hours subject to Tenure or Hire Agreement
Public performance or education	Limited to the physical constraints of the facility and/or to the requirements of the activity	Operating hours subject to Tenure or Hire Agreement
Public utility infrastructure	Limited to the physical constraints of the facility	24 hours a day, 7 days a week
Remediation works	Subject to noise, workplace health and safety and relevant legislation	24 hours a day, 7 days a week
Sponsorship signage (temporary)	As per section	24 hours a day, 7 days a week
Storage facilities	Limited to the physical constraints of the facility	24 hours a day, 7 days a week subject to Tenure or Hire Agreement
Telecommunication facilities	Subject to relevant legislation	24 hours a day, 7 days a week



Use	Scale	Intensity
Temporary structures (i.e. marquees, tents, stages)	Limited to the physical constraints of the facility	Temporary structures (no pegs, weighted only)
Youth programs and events	Limited to the physical constraints of the facility and/or to the requirements of the activity	8.00am – 10.00 pm, 7 days a week subject to Tenure or Hire Agreement

It is an express provision of this PoM that Council shall provide from time to time as circumstances may require the construction and maintenance of utility services, provision and maintenance of floodways, cycle ways, vehicular access ways and the granting of easements.

11.3 Leases, Licences and other Estates

For this section please see the Explanation of Terms⁸ set out below.

The *Local Government Act 1993* provides that tenures (leases, licences, or any other estates) or easements may be granted over all or part of community land.

Tenures may be held by:

- community organisations and sporting clubs, or
- by private/commercial organisations or
- individuals providing facilities and/or services for public use.

The maximum period for leases and licences on community land allowable under the *Local Government Act 1993* is 30 years (with the consent of the Minister for a period over 21 years) for purposes consistent with the categorisation and core objectives of the particular area of community land.

Community land may only be leased or licensed for periods of more than 5 years if public notice is given according to the requirements of Sections 47 and 47A of the *Local Government Act 1993*.

Leases

A lease will be generally required where exclusive use or control of all or part of community land is desirable for effective management. A lease may also be required when the scale of investment in facilities, necessity for security measures, or where the relationship between a holder and facilities on community land justifies such security of tenure.

Leases issued by Council will require:

⁸ Explanation of Terms

Tenure – A lease, licence or other estate issued by Council in accordance with Section 46 of the *Local Government Act 1993* or Section 2.20 of the *Crown Land Management Act 2016*.

Holder – The company, organisation, individual or group of individuals who have been issued with a Tenure.

Hire Agreement – An estate issued by the Holder to the Hirer consistent with their Tenure.

Hirer – The company, organisation, individual or group of individuals who have been issued with a Hire Agreement.



- That subleases or any other supplementary tenures can only be issued by the Holders with the approval of Council, and consistent with Section 47C of the LGA.
- Maintenance of the facility will be the responsibility of the Lessees.

Licences

Licences allow multiple and non-exclusive use of an area. A licence may be required where intermittent or short-term use or control of all or part of the community land is proposed. A number of licences for different holders can apply to the same area at the same time, provided there is no conflict of interest.

Hire Agreements

An agreement for use of the land subject to this PoM may be issued by the Holder for any purpose consistent with Tenure conditions.

Purposes for which Tenures may be issued

In accordance with Section 46A of the LGA, a Plan of Management for community land is to specify and authorise any purpose for which a lease, licence or other estate may be granted over community land during the life of a Plan of Management.

This Plan of Management authorises a Tenure to be issued:

- for any permissible use in Table 1.
- for purposes consistent with the Reserve's:
 - categorisation (see Section 10.1), and
 - zoning (see Section 4.1) under Section 46 of the LGA, and
 - reserve purpose of Public Recreation and Community Purposes as required under the CLMA.

However, the CLMA allows that Council may also issue short term licences (for a period of less than one year) consistent with Section 2.20 of the CLMA. This section provides that licences may be issued, inconsistent with the reservation purpose, for prescribed purposes currently as shown in Appendix 3⁹.

Council may grant a lease, licence or other estate in respect of Community Land for:

- A purpose prescribed by Section 36I as a core objective of the categorisation of the land and subject to being consistent with the Reserve purpose; or
- For the provision of goods, services and facilities, and the carrying out of activities, appropriate to the current and future needs within the local community and of the wider

⁹ *Crown Land Management Regulation Section 31.*



public in relation to Public Recreation and Community Purposes.

A tenure or hire agreement on Crown land may impact native title rights and interests. Apart from the tenure/hire agreements authorised above¹⁰, which are valid acts under Section 24JA of the *Native Title Act 1993*, any use agreement issued on Crown land must be issued in accordance with the future act provisions of the *Native Title Act 1993* and in accordance with Part 8 of the *Crown Land Management Act 2016* unless native title is extinguished. For Crown land which is not *excluded land* this will require written advice from one of Council's native title managers that it complies with any applicable provisions of the native title legislation.

Council at any time in the future, reserves the right to prohibit the taking or consumption of alcohol on this Reserve. This will be indicated by conspicuously displayed signs in accordance with Section 632 and Section 670 of the *Local Government Act, 1993* (as amended).

Direction of Funds

Income produced from the Reserve will be distributed to manage community land in a fashion directed by Council.

¹⁰ This does not include Business Operations, Commercial Premises, Advertising (Business) or Storage (Business).



11.4 Allocation

The Reserve will continue to be used by a variety of user groups and individuals for purposes previously noted. Council will endeavor to generate greater utilisation of the Reserve for community purpose and other activities consistent with the Reserve's purpose.

11.5 Fees

Council applies fees for the use of Council reserves.

The fees associated with the hiring of Council reserves for major events, concerts, functions etc., are detailed in Council's Revenue Policy on Council's website. Council's fee structure is reviewed on an annual basis.

Where the Reserve is to be hired for a purpose not within Council's Revenue Policy, the fee will be set by Council.

11.6 Communication in the Management of the Reserve

Communication between Council, Holders, Hirers and Casual users is important to the success of this Plan. Council will establish and maintain clear lines of communication with Tenure holders and across all Reserve users, especially relating to the operations of and responsibilities within (proposed) tenure operations.

This will include:

- regular meetings between Council, Tenure Holders and regular hirers, and
- the establishment of the clear understanding that the multipurpose centre will be occupied on the basis of formal agreement.

11.7 Easements

Council reserves the right to grant easements as required for utilities and access, bearing in mind the impact of such easements on the site.

The granting of easements over Crown land will be subject to the provisions of the Native Title Act 1993 and Division 8.7 of the *Crown Land Management Act 2016*.

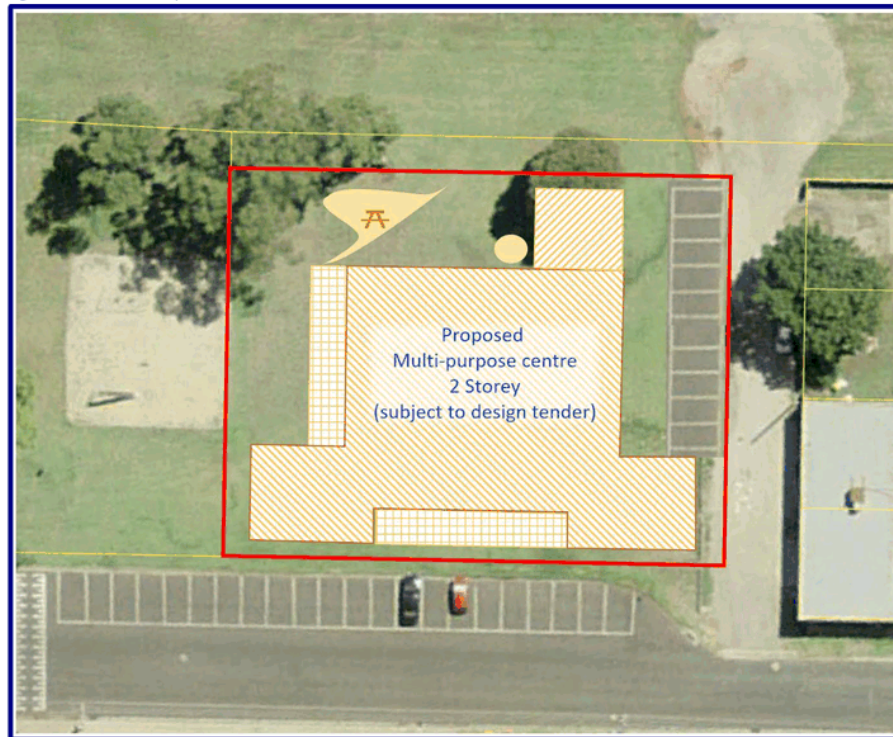
11.8 Development of New and Improvement of Existing Facilities

Council approval is required prior to any development or improvement made to Community Land.

All major developments and improvements to be funded (solely or partially) by Council will be subject to Council approval.



Figure 5 - Planned Improvements



Future improvements to the Reserve (see **Figure 5** for anticipated site coverage and **Figure 6** for artist's impression) will include:

- The construction of a new, accessible, double storey, fit for purpose, multifunction centre and associated infrastructure works aimed at accommodating the services described in Section 11.1.
- Required car parking to service the centre and the adjoining recreation reserve.
- Associated landscaping.

Where it is proposed to construct or establish a public work¹¹ on reserved or dedicated Crown land,

¹¹ A public work is defined as:

(a) any of the following that is constructed or established by or on behalf of the Crown, or a local government body or other statutory authority of the Crown, in any of its capacities:

- (i) a building, or other structure (including a memorial), that is a fixture; or
- (ii) a road, railway or bridge; or
- (iia) where the expression is used in or for the purposes of Division 2 or 2A of Part 2--a stock-route; or
- (iii) a well, or bore, for obtaining water; or
- (iv) any major earthworks; or

(b) a building that is constructed with the authority of the Crown, other than on a lease.

Major earthworks are defined as:

earthworks (other than in the course of mining) whose construction causes major disturbance to the land, or to the bed or subsoil under waters.



where native title is not extinguished, prior to approval Council will notify and give an opportunity for comment from any representative Aboriginal/Torres Strait Islander bodies, registered native title bodies corporate and registered native title claimants in relation to the land or waters covered by the reservation or lease as required under the *Native Title Act 1993*.

Figure 6 - Artists Impression of the proposed Multi – Purpose Centre



Where a proposed update of a Park Master Plan, Capital Works Program, Sportsground Action Plan, Sports Facilities Asset Management Plan or any other plan is the approving documentation for a public work on Crown land, that approval will not be given unless the requirements of the *Native Title Act 1993* have been addressed including the notification and opportunity to comment noted above.

11.9 Maintenance of Facilities

Council will ensure the facilities on the Reserve are maintained to an appropriate standard. It intends to:

- Maintain the structures and open spaces on the Reserve in accordance with Council's *Asset Management Plan Strategy* to measured targets within available resources.
- Monitor the condition of structures on the Reserve and ensure effective maintenance procedures are in place through tenure conditions.
- Prepare a safety audit of the site and repair or replace any areas that may impact on public safety.
- Ensure the efficient and conservative use of water, pesticides, herbicides and fertilisers across the Reserve, where required.
- Ensure regular collection of rubbish and elevate compliance activities against illegal dumping of rubbish.



- Council officers to continue monitoring for issues of compliance and general site amenity.
- Maintain existing drainage systems across the Reserve to minimise impact of flooding and waterlogging.

11.10 Signage

Council uses signs to regulate the activities carried out on Community Land and to provide educational information so as to provide a safe and enjoyable place for passive and active recreational pursuits.

Whilst signs are a crucial source of information, they have a significant impact on the aesthetics of a reserve. All signs must meet a design standard and be approved by Council. All signs must be sympathetic to their environment in their design, construction and location.

Council uses the *Statewide Mutual Best Practice Manual – Signs as Remote Supervision* for design of safety signage.

All signage must be placed in accordance with *State Environmental Planning Policy No 64 – Advertising and Signage* or *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*. Signage must also be consistent with the *Griffith Development Control Plan* and the *Council Signage in Parks, Reserves and Pools Policy*.

Where a sign requires development consent, Council must approve as owner the lodging of a Development Application prior to assessment by Council in accordance with Schedule 1 Assessment Criteria of SEPP No 64.

Where a sign does not require development consent, Council must approve the sign before erection.

All Council signs erected under Section 632 of the *Local Government Act*, plus reserve name signs and traffic and safety signs, are permissible.

Proposed Signage

Council will ensure the following signage is on the Reserve:

- Construct suitable entrance area featuring descriptive signage.
- Directional signage for the purposes of guiding the community to required infrastructure and services.
- Signage for safety purposes including speed limitations and evacuation procedures.



12 FINANCIAL SUSTAINABILITY

Council anticipates that following construction of the multipurpose centre the land subject to this Pom will be self-funding through appropriate tenures.

During periods of vacancy Council will manage the Reserve through general revenue.



13 IMPLEMENTATION PLAN

Table 2 sets out a number of actions required to implement the identified Management Strategies and Performance Targets within the Reserve. These actions are the means of achieving the objectives of the PoM.

A clear indication of how the completion of the aims will be assessed is also provided in the table under Performance Evaluation.

Table 2- Implementation Table

Management Objectives	Management Strategies	Actions	Performance Evaluation (how they will be assessed)
GENERAL COMMUNITY USE			
To promote, encourage and provide for the use of the land, and to provide facilities on the land, to meet the current and future needs of the local community and of the wider public: in relation to public recreation and the physical, cultural and intellectual welfare or development of individual members of the public, and	A. Complete essential works in accordance with required approvals.	- Engage a suitably qualified consultant to design and construct a new accessible 2-storey multipurpose centre. Determine the appropriate Planning mechanism Obtain development consent for the construction of the multipurpose centre, and associated carparking and landscaping <u>under either Part 4 or Part 5 of the Environmental Planning & Assessment Act, 1979.</u> - Construct the multipurpose centre in accordance with <u>the issued determination under either Part 4 or Part 5 of the Environmental Planning & Assessment Act, 1979.</u> development consent. - Issue new tenures for occupation of the multipurpose centre in accordance with Council's procurement requirements, relevant council policies and relevant legislation including the <i>Native Title Act 1993</i>	- Contract awarded for construction of multipurpose centre. Development consent obtained for multipurpose centre <u>Determination issued for multipurpose centre.</u> - Multipurpose centre constructed and occupation certificate obtained <u>if determination is issued under Part 4 of the Environmental Planning & Assessment Act, 1979.</u> - All new works are completed in accordance with works plans. - General Community Use area has attracted new holders and hirers. - Feedback from holders, hirers and other users is positive. - All new tenures for occupation are compliant with Council's procurement requirements, relevant council policies and relevant legislation including the <i>Native Title Act 1993</i>.



Management Objectives	Management Strategies	Actions	Performance Evaluation (how they will be assessed)
	B. Continue to manage and maintain new and existing assets with approvals as required to appropriate standards.	5. Ensure reserve is maintained where possible through appropriate tenure arrangements. 6. Ensure adherence to the Council's asset maintenance schedule. 7. Repair existing bitumen sections of Ulong Lane where it is used as vehicular access to the multipurpose centre. 8. Erect well marked entrance descriptive signage. 9. Carry out essential repairs to facilities.	- Assets are managed in accordance with prescribed Council standards and community expectations. - Improved environmental management outcomes. - Grounds well maintained in accordance with use agreements and responsibilities, tidy, orderly and clean. - Efficient signage, no confusion. - Feedback from holders, hirers and other users is positive.
	C. Manage the land for improved and appropriate outcomes.	10. Ensure appropriate management of vegetated surfaces of the General Community Use area including mowing at suitable time intervals. 11. Ensure the efficient and conservative use of water, pesticides, herbicides and fertilisers across the General Community Use area, where required. 12. Ensure regular collection of rubbish. 13. Erect signage in accordance with Schedule 1 SEPP 64 and approved by Council.	- Improved environmental management outcomes. - Grounds well maintained in accordance with use agreements and responsibilities, tidy, orderly and clean. - Efficient signage, no confusion. - Feedback from holders, hirers and other users is positive.
	D. Monitoring and Compliance.	14. Continue to monitor the condition of structures on the General Community Use area and ensure effective maintenance procedures are in place through tenure conditions 15. Implement a safety audit of the General Community Use area and repair or replace any areas that may impact on public safety. 16. Ensure that the requirements of any lease or usage agreement are met. 17. Regular inspections by Council officers.	- Audit processes for safety and asset condition reporting developed and working well. - Tenures are well managed resulting in no complaints and showing desired cash flow. - No confusion or inefficiencies regarding use and occupation exist. - No illegal use and abuse of facilities.



Management Objectives	Management Strategies	Actions	Performance Evaluation (how they will be assessed)
	E. Capitalise on good relationships with holders and hirers and stimulate others towards greater use of the General Community Use area.	18. Council officers to continue monitoring for issues of compliance and general site amenity.	• Holders and Hirers are content with tenuring arrangements and plan is working well with all, including improved clarity and communication.
	F. Build relationships with existing and new users in order to draw more people to the General Community Use area, to maximise business and cash flow.	19. Establish appropriate tenure arrangements for existing and new users, at recommended/appropriate rent and hire fees. 20. Encourage a positive relationship between Holders and Hirers through the establishment of clear expectations, and communications. 21. Encourage Users, Hirers and other organisations to actively participate in the maintenance of the facilities they use, as per agreement. 22. Where necessary, develop guidelines to clarify and strengthen the requirement for user groups to maintain orderly and tidy surrounds at all times.	• Holders and Hirers are content with tenuring arrangements and plan is working well with all, including improved clarity and communication.



14 CONSULTATION DURING THE PREPARATION OF THIS PLAN

Community consultation is an important source of information necessary to provide an effective Plan of Management for Community Land and is a requirement under Section 38 of the *LGA*. As such, Griffith City Council is committed to the principles and activities within the participating community which guide Council's decision-making processes. Such participation creates the opportunity for interested parties to become actively involved in the development of a plan which reflects the needs, opinions and priorities of people using the Reserve.

Section 38 of the *LGA* requires that:

- Council must give public notice of a draft plan of management.
- The period of public exhibition of the draft plan must be not less than 28 days.
- The public notice must also specify a period of not less than 42 days after the date on which the draft plan is placed on public exhibition during which submissions may be made to Council.
- Council must, in accordance with its notice, publicly exhibit the draft plan together with any other matter which it considers appropriate or necessary to better enable the draft plan and its implications to be understood.

Council must also hold a public hearing as required under Section 40A of the *LGA*.

This plan is over Crown land and proposes a change in categorisation. The consent of the Minister for Water, Property and Housing is required under section 3.23(d)(i) of the *CLMA*.

Prior to formal commencement of this PoM, the public has been made aware of the Multi-purpose Centre proposal within:

- Council's newsletter, and
- Council's minutes.



15 APPENDICES

- 1) Core Objectives for Categories of Community Land.
- 2) Relevant State Environmental Planning Policies.
- 3) Prescribed purposes under the *Crown Lands Management Act 2016*.



16 REFERENCES

Commonwealth Government, *Native title Act 1993*,
www.legislation.gov.au/Browse/Results/ByTitle/Acts/InForce/Na/0/0/principal.

Department of Local Government, *Practice Note No.1, Public Land Management*, Amended May 2000.

Griffith City Council, *Griffith CBD Strategy 2015*,
https://www.griffith.nsw.gov.au/cp_themes/default/page.asp?p=DOC-ZCX-37-12-83.

Griffith City Council, *Griffith Local Environmental Plan 2014*, www.legislation.nsw.gov.au.

RF Isbell, *The Australian Soil Classification (Revised edition)*, January 2016.

New South Wales Government, *Crown Land Management Act 2016*,
www.legislation.nsw.gov.au/.

New South Wales Government, *Local Government Act 1993* amended by the *Local Government (Community Land Amendment) Act 1998*, www.legislation.nsw.gov.au/.

Office of Environment and Heritage, *Espade*, ww.environment.nsw.gov.au/eSpadeWebapp/.



Appendix 1

CORE OBJECTIVES FOR CATEGORIES OF COMMUNITY LAND (*Local Government Act 1993*):

36E Core objectives for management of community land categorised as a natural area

The core objectives for management of community land categorised as a natural area are:

- (a) to conserve biodiversity and maintain ecosystem function in respect of the land, or the feature or habitat in respect of which the land is categorised as a natural area, and
- (b) to maintain the land, or that feature or habitat, in its natural state and setting, and
- (c) to provide for the restoration and regeneration of the land, and
- (d) to provide for community use of and access to the land in such a manner as will minimise and mitigate any disturbance caused by human intrusion, and
- (e) to assist in and facilitate the implementation of any provisions restricting the use and management of the land that are set out in a recovery plan or threat abatement plan prepared under the *Biodiversity Conservation Act 2016* or the *Fisheries Management Act 1994*.

36F Core objectives for management of community land categorised as a sportsground

The core objectives for management of community land categorised as a sportsground are:

- (a) to encourage, promote and facilitate recreational pursuits in the community involving organised and informal sporting activities and games, and
- (b) to ensure that such activities are managed having regard to any adverse impact on nearby residences.

36G Core objectives for management of community land categorised as a park

The core objectives for management of community land categorised as a park are:

- (a) to encourage, promote and facilitate recreational, cultural, social and educational pastimes and activities, and
- (b) to provide for passive recreational activities or pastimes and for the casual playing of games, and
- (c) to improve the land in such a way as to promote and facilitate its use to achieve the other core objectives for its management.

36H Core objectives for management of community land categorised as an area of cultural significance

- (1) The core objectives for management of community land categorised as an area of cultural significance are to retain and enhance the cultural significance of the area (namely its Aboriginal, aesthetic, archaeological, historical, technical or research or social significance) for past, present or future generations by the active use of conservation methods.
- (2) Those conservation methods may include any or all of the following methods:
 - (a) the continuous protective care and maintenance of the physical material of the land or of the context and setting of the area of cultural significance,



- (b) the restoration of the land, that is, the returning of the existing physical material of the land to a known earlier state by removing accretions or by reassembling existing components without the introduction of new material,
 - (c) the reconstruction of the land, that is, the returning of the land as nearly as possible to a known earlier state,
 - (d) the adaptive reuse of the land, that is, the enhancement or reinforcement of the cultural significance of the land by the introduction of sympathetic alterations or additions to allow compatible uses (that is, uses that involve no changes to the cultural significance of the physical material of the area, or uses that involve changes that are substantially reversible or changes that require a minimum impact),
 - (e) the preservation of the land, that is, the maintenance of the physical material of the land in its existing state and the retardation of deterioration of the land.
- (3) A reference in subsection (2) to land includes a reference to any buildings erected on the land.

36I Core objectives for management of community land categorised as general community use

The core objectives for management of community land categorised as general community use are to promote, encourage and provide for the use of the land, and to provide facilities on the land, to meet the current and future needs of the local community and of the wider public:

- (a) in relation to public recreation and the physical, cultural, social and intellectual welfare or development of individual members of the public, and
- (b) in relation to purposes for which a lease, licence or other estate may be granted in respect of the land (other than the provision of public utilities and works associated with or ancillary to public utilities).

36J Core objectives for management of community land categorised as bushland

The core objectives for management of community land categorised as bushland are:

- (a) to ensure the ongoing ecological viability of the land by protecting the ecological biodiversity and habitat values of the land, the flora and fauna (including invertebrates, fungi and micro-organisms) of the land and other ecological values of the land, and
- (b) to protect the aesthetic, heritage, recreational, educational and scientific values of the land, and
- (c) to promote the management of the land in a manner that protects and enhances the values and quality of the land and facilitates public enjoyment of the land, and to implement measures directed to minimising or mitigating any disturbance caused by human intrusion, and
- (d) to restore degraded bushland, and
- (e) to protect existing landforms such as natural drainage lines, watercourses and foreshores, and
- (f) to retain bushland in parcels of a size and configuration that will enable the existing plant and animal communities to survive in the long term, and
- (g) to protect bushland as a natural stabiliser of the soil surface.

36K Core objectives for management of community land categorised as wetland

The core objectives for management of community land categorised as wetland are:

- (a) to protect the biodiversity and ecological values of wetlands, with particular reference to their



- hydrological environment (including water quality and water flow), and to the flora, fauna and habitat values of the wetlands, and
- (b) to restore and regenerate degraded wetlands, and
- (c) to facilitate community education in relation to wetlands, and the community use of wetlands, without compromising the ecological values of wetlands.

36L Core objectives for management of community land categorised as an escarpment

The core objectives for management of community land categorised as an escarpment are:

- (a) to protect any important geological, geomorphological or scenic features of the escarpment, and
- (b) to facilitate safe community use and enjoyment of the escarpment.

36M Core objectives for management of community land categorised as a watercourse

The core objectives for management of community land categorised as a watercourse are:

- (a) to manage watercourses so as to protect the biodiversity and ecological values of the instream environment, particularly in relation to water quality and water flows, and
- (b) to manage watercourses so as to protect the riparian environment, particularly in relation to riparian vegetation and habitats and bank stability, and
- (c) to restore degraded watercourses, and
- (d) to promote community education, and community access to and use of the watercourse, without compromising the other core objectives of the category.

36N Core objectives for management of community land categorised as foreshore

The core objectives for management of community land categorised as foreshore are:

- (a) to maintain the foreshore as a transition area between the aquatic and the terrestrial environment, and to protect and enhance all functions associated with the foreshore's role as a transition area, and
- (b) to facilitate the ecologically sustainable use of the foreshore, and to mitigate impact on the foreshore by community use.



Appendix 2

STATE ENVIRONMENTAL PLANNING POLICIES WHICH ARE RELEVANT TO THE OLYMPIC PARK

State Environmental Planning Policy (Infrastructure) 2007

State Environmental Planning Policy (Infrastructure) 2007 provides that certain types of works do not require development consent under Part 4 of the *Environmental Planning and Assessment Act 1979* (EP&A).

Clause 20 of SEPP (Infrastructure) provides that a range of works are “exempt development” when carried out for or on behalf of a public authority (including Griffith City Council). These works are itemised in Schedule 1 of the SEPP and include paths and ramps for disabled access, fencing, firefighting emergency equipment, small decks, prefabricated sheds of up to 30m² in area, retaining walls up to 2m in height, landscaping including paving and access tracks, minor external and internal alterations to buildings, open car parks (size is not specified) and demolition of buildings covering an area of up to 100m².

Clause 65 of the SEPP (Infrastructure) provides that Development for any purpose may be carried out without consent on Crown managed land, by or on behalf of a Crown land manager of the land if the development is for the purposes of implementing a plan of management adopted for the land in accordance with the *Local Government Act 1993*.

Further, any of the following developments may be carried out by or on behalf of a council without consent on a public reserve under the control of or vested in the council:

- (a) development for any of the following purposes:
 - (i) roads, pedestrian pathways, cycleways, single storey car parks, ticketing facilities, viewing platforms and pedestrian bridges,
 - (ii) recreation areas and recreation facilities (outdoor), but not including grandstands,
 - (iii) visitor information centres, information boards and other information facilities,
 - (iv) lighting, if light spill and artificial sky glow is minimised in accordance with the Lighting for Roads and Public Spaces Standard,
 - (v) landscaping, including landscape structures or features (such as art work) and irrigation systems,
 - (vi) amenities for people using the reserve, including toilets and change rooms,
 - (vii) food preparation and related facilities for people using the reserve,
 - (viii) maintenance depots,
 - (ix) portable lifeguard towers,
- (b) environmental management works,
- (c) demolition of buildings (other than any building that is, or is part of, a State or local heritage item or is within a heritage conservation area).



State Environmental Planning Policy (Exempt and Complying Development Codes) 2008

State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 (SEPP Exempt) provides that certain types of works do not require development consent under Part 4 of the EP&A Act. The General Exempt Development Code is set out in Division 1 of the SEPP, providing the limitations and conditions of the exemptions. They include:

- Access Ramps
- Advertising and signage
- Aerials, antennae and communication dishes
- Air-conditioning units
- Animal shelters
- Aviaries
- Awnings, blinds and canopies
- Balconies, decks, patios, pergolas, terraces and verandahs
- Barbecues and other outdoor cooking structures
- Bollards
- Charity bins and recycling bins
- Earthworks, retaining walls and structural support
- Fences
- Flagpoles
- Footpaths, pathways and paving
- Fowl and poultry houses
- Garbage bin storage enclosure
- Hot water systems
- Landscaping Structures
- Minor building alterations
- Mobile food and drink outlets
- Playground equipment
- Screen enclosures
- Sculptures and artworks
- Temporary uses and structures
- Waste storage containers

Section 1-16 of Division 2 of the SEPP provides the General Requirements for exempt development.

State Environmental Planning Policy (Miscellaneous Consent Provisions) 2007

The aims of the *State Environmental Planning Policy (Miscellaneous Consent Provisions) 2007* are as follows:

- to provide that the erection of temporary structures is permissible with consent across the State,
- to ensure that suitable provision is made for ensuring the safety of persons using temporary structures,
- to encourage the protection of the environment at the location, and in the vicinity, of temporary structures by specifying relevant matters for consideration,
- to provide that development comprising the subdivision of land, the erection of a building or the demolition of a building, to the extent to which it does not already require development consent under another environmental planning instrument, cannot be carried out except with development consent.



State Environmental Planning Policy No 64—Advertising and Signage

State Environmental Planning Policy No. 64 Advertising and Signage aims:

- to ensure that signage (including advertising):
 - (i) is compatible with the desired amenity and visual character of an area, and
 - (ii) provides effective communication in suitable locations, and
 - (iii) is of high-quality design and finish,
- to regulate signage (but not content) under Part 4 of the Act, and
- to provide time-limited consents for the display of certain advertisements, and
- to regulate the display of advertisements in transport corridors, and
- to ensure that public benefits may be derived from advertising in and adjacent to transport corridors.

This Policy does not regulate the content of signage and does not require consent for a change in the content of signage.



Appendix 3

Prescribed Purposes under the Crown Land Management Act 2016

Section 31 of the *Crown Land Regulation 2018* provides that short-term licences over dedicated or reserves Crown land may be granted under Sections 2.20 and 3.17 of the *Crown Land Management Act 2016* for the following purposes:

- | | |
|---|--|
| (a) access through a reserve, | (m) grazing, |
| (b) advertising, | (n) hiring of equipment, |
| (c) camping using a tent, caravan or otherwise, | (o) holiday accommodation, |
| (d) catering, | (p) markets, |
| (e) community, training or education, | (q) meetings, |
| (f) emergency occupation, | (r) military exercises, |
| (g) entertainment, | (s) mooring of boats to wharves or other structures, |
| (h) environmental protection, conservation or restoration or environmental studies, | (t) sales, |
| (i) equestrian events, | (u) shows, |
| (j) exhibitions, | (v) site investigations, |
| (k) filming (as defined in the Local Government Act 1993), | (w) sporting and organised recreational activities, |
| (l) functions, | (x) stabling of horses, |
| | (y) storage. |



ABN : 11 607 533 862

Ms Daphne Bruce
Griffith City Council
PO Box 485
Griffith NSW 2680

Our Ref : 20.150
your ref :

Date : 13 January 2020

Via email : daphne.bruce@griffith.nsw.gov.au

Dear Ms Bruce

Re: Native Title Managers Advice – Draft Plan of Management – Olympic Park

Lands Advisory Services (Landsas) has reviewed Griffith City Council's (Council) draft Plan of Management for Olympic Park, Griffith dated November 2019.

Please find attached my advice pursuant to Section 8.7(1) of the *Crown Land Management Act 2016*.

As the Plan of Management authorises the construction of:

- a new, accessible, double storey, fit for purpose, multifunction centre and associated infrastructure works,
- required car parking to service the centre and the adjoining recreation reserve, and
- associated landscaping.

which is a public work, Council is required to notify and give an opportunity to comment to NTSCorp Limited as the representative aboriginal body for New South Wales under Section 24JB(6) of the *Native Title Act 1993*. In this regard notification was given on 18 November 2019 and the notification period expired on 16 December 2019. No comments were received.

Please feel free to contact me should any further advice be required.

Yours Faithfully,

A handwritten signature in black ink, appearing to read "Craig Barnes".

Craig Barnes
Native Title Manager
Managing Director
Lands Advisory Services Pty Ltd

Lands Advisory Services Pty Ltd
PO Box 2317, Dangar NSW 2309
E : craig.barnes@landsas.com.au T : 0428 474 542

Native Title Managers Report

A. Proposed Act

This report considers the following relevant act:

- Adoption of the Griffith City Council's Olympic Park Plan of Management (OPPoM)

B. Summary

- 1) The adoption of the Olympic Park Plan of Management authorises public works, being the construction:

- of a new, accessible, double storey, fit for purpose, multifunction centre and associated infrastructure works.
- required car parking to service the centre and the adjoining recreation reserve.
- associated landscaping.

These public works will affect native title, however, they will comply with the applicable provisions of the *Native Title Act 1993* being valid future acts under section 24JA.

As the proposed act in (A) above involves the construction or establishment of a public work Council is required to notify and give the opportunity to comment to NTSCorp Limited as the representative aboriginal body for New South Wales under Section 24JB(6) of the *Native Title Act 1993*. In this regard notification was given on 15 November 2019 (see **Tag E**) and the notification period expired on 16 December 2019. No comments were received.

- 2) The adoption of the Olympic Park Plan of Management authorises leases, licences, permits and other estates for purposes:

- As listed in Table 1 of the OPPoM
- Consistent with the Reserve's categorisation, zoning and reserve purpose, and
- Consistent with Section 2.20 of the *Crown Land Management Act 2016*.

This authorisation is subject to obtaining further native title manager's advice, where the land remains *relevant land* and is not *excluded land*¹, in relation to the following purposes:

- business operations,
- commercial premises,
- advertising (business), and
- storage (business)

Excepting for the four purposes listed above the authorised leases, licences, permits and other estates will or may affect native title, however, they will comply with the applicable provisions of the *Native Title Act 1993* being valid future acts under section 24JA.

¹ *Relevant land* and *excluded land* are defined in Section 8.1 of the *Crown Land Management Act 2016*

- 3) Other uses set out in the OPPoM, particularly set out in Table 1 will or may affect native title, however, they will comply with the applicable provisions of the *Native Title Act 1993* being valid future acts under section 24JA.
- 4) Should native title not prove to be extinguished by a prior act, any native title holders may be entitled to compensation for the acts listed in (1) to (3), in the event of a determination that native title exists in the land, and Council may be liable to indemnify the State in the payment of any compensation.

C. Crown Land Affected

The land subject to the OPPoM is Crown land under the *Crown Land Management Act 2016* (CLMA). This Crown land is listed in Table 1 showing the purpose the land is reserved and the legislation employed in the reservation process.

Table 1 - Crown land affected

(A) Reserve No	(B) Lot / Sec /DPs	(C) Purpose - Gazette Date	(D) Part of Reserve Affected	(E) Legislative Basis
R.85064	5/54/758476	Public Recreation - 23 Oct 1964 (see Tag A) ²	Land noted in column (B)	Section 28 <i>Crown Lands Consolidation Act 1913</i>
		Community Purposes - 15 Jul 2011 (see Tag C)		Section 121A <i>Crown Lands Act 1989</i>

1. The Griffith City Council Crown Reserves Reserve Trust was established and appointed trustee of R.85064 on 16 December 1994 (see **Tag D**). Griffith City Council was appointed as Reserve Trust manager in the same notice.

Following various legislative changes in the management of Crown land Griffith City Council is now Crown land manager of R.85064 for the purposes of the *Crown Land Management Act 2016*.

2. A search of the National Native Title Tribunal Registers on 15 November 2019 indicates:
 - there is no current native title application (claim) over the subject land,
 - no determination of native title has yet been made, and
 - no Indigenous Land Use Agreement has been registered affecting R.85064.
3. We are not aware of any compulsory acquisitions of native title or future act protection determinations which would impact the R.85064.
4. We are not aware of the any native title certificates under the CLMA having been issued.

² Part of this section of R.85064 was revoked 21 March 1975 (see **Tag B**).

5. For the purposes of Section 8.7(1) of the CLMA:

- R.85064 is *relevant land*,
- none of R.85064 is *excluded land*, and
- Griffith City Council is the *Responsible Person*

D. Does the proposed act affect native title?

The relevant act, the adoption of the OPPoM, may occur at some further stage and authorises further acts which may affect native title.

(1) The OPPoM authorises use for the following purposes without further approval.

- | | |
|---|--|
| • Access roads | • Maintenance buildings |
| • Amenities | • Maintenance of utility services |
| • Alternate energy technology | • Maintenance of floodways, cycle ways and vehicular access ways |
| • Car parking | • Paths |
| • Community events (fundraising/charity events, special events) | • Public utility infrastructure |
| • Community Services | • Remediation works |
| • Drainage | • Telecommunication facilities |
| • Education Services | • Temporary structures (i.e. marquees, tents, stages) |
| • Emergency use | |
| • Landscaping | |

(2) The OPPoM authorises impacting acts for development being:

- The construction of a new, accessible, double storey, fit for purpose, multifunction centre and associated infrastructure works.
- Required car parking to service the centre and the adjoining recreation reserve.
- Associated landscaping

(3) The OPPoM also authorises further impacting acts being leases, licenses, permits or other estates for:

(a) As listed in Table 1 of the OPPoM:

- | | |
|---------------------------------------|---|
| • Access roads | • Playing of games |
| • Amenities | • Children's programs and events |
| • Alternate energy technology | • Community events (fundraising/charity events, special events) |
| • Art and cultural classes and events | • Community Services |
| • Business Operations | • Drainage |
| • Cafe | • Education Services |
| • Car parking | • Emergency use |

20.150

- Filming and photography (commercial, amateur)
- Landscaping
- Licensed bar, bistro
- Maintenance buildings
- Paths
- Personal training
- Playing of a musical instrument, or singing, for fee or reward
- Private events (i.e. weddings, birthdays)
- Public performance or education
- Public utility infrastructure
- Remediation works
- Sponsorship signage (temporary)
- Storage facilities
- Telecommunication facilities
- Temporary structures (i.e. marquees, tents, stages)
- Youth programs and events

(b) Consistent with the Reserve's categorisation, zoning and reserve purpose

- Environmental protection works
- Boarding houses
- Centre-based childcare facilities
- Commercial premises
- Community facilities
- Educational establishments
- Entertainment facilities
- Function centres
- Information and education facilities
- Medical centres
- Passenger transport facilities
- Recreational facilities (indoor)
- Registered clubs
- Respite day care centres
- Roads
- Tourist and visitor accommodation

(c) Consistent with Section 2.20 of the CLMA

- access through a reserve
- advertising
- camping using a tent, caravan or otherwise
- catering
- community, training or education
- emergency occupation
- entertainment
- environmental protection, conservation or restoration or environmental studies,
- equestrian events
- exhibitions
- filming (as defined in the *Local Government Act 1993*)
- functions
- grazing
- hiring of equipment
- holiday accommodation
- markets
- meetings
- military exercises
- mooring of boats to wharves or other structures
- sales
- shows
- site investigations
- sporting and organised recreational activities,
- stabling of horses
- storage.

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E. Land Status

Table 1 shows the current reserve status of the land.

The relevant act is not a past act for the purposes of the *Native Title Act 1993*.

F. Future Act Regime

- (1) Subdivisions B – E do not apply. There are no existing Indigenous Land Use Agreements in place over any of the affected land.
- (2) Subdivision F does not apply. No non-claimant application has been previously made.
- (3) Subdivision G does not apply. The relevant act is unrelated to primary production.
- (4) Subdivision H does not apply. The relevant act does not relate to the management or regulation of surface and subterranean water, living aquatic resources or airspace.
- (5) Subdivision I does not apply. While it is possible that pre-existing rights-based acts may exist, these will be considered when individual leases are sought to be extended, if necessary.
- (6) Subdivision JA does not apply. The relevant act does not relate to public housing.
- (7) Subdivision J applies Table 2 shows the requirements to satisfy Subdivision J and how that requirement is satisfied.

Table 2 - Requirements for an Act to be valid under Subdivision J

Requirement	Section	Comment
There is a valid the earlier act that took place before the later act and on or before 23 December 1996.	24JA(1)(a)	<u>Requirement satisfied</u> The Gazette dates for the affected land took place and on or before 23 December 1996 (see column C of Table 1).
The earlier act was valid (including because of Div. 2 or 2A).	24JA(1)(b)	<u>Requirement satisfied</u> The reservation was valid. A reservation under Section 28 <i>Crown Lands Consolidation Act 1913</i> was valid if the Minister notified the reservation or dedication in the Gazette.
The earlier act was done by the Crown in right of the Commonwealth, a State or Territory; or consisted of the making, amendment or repeal of legislation.	24JA(1)(c)	<u>Requirement satisfied</u> Each of the earlier acts was undertaken by either the Governor or the responsible State Minister. A.G.Enticknap
The earlier act contained, made or conferred a reservation, proclamation, dedication, condition, permission or authority (the reservation) under which the whole or part of any land or waters was to be used for a particular purpose.	24JA(1)(d)	<u>Requirement satisfied</u> Each of the earlier acts was for a particular purpose being Public Recreation.

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Requirement	Section	Comment
The later act is done in good faith: i. under or in accordance with the reservation; or ii. in the area covered by the reservation, so long as the act's impact on native title is no greater than the impact that any act that could have been done under or in accordance with the reservation would have had.	24JA(1)(e)	<u>Requirement satisfied in part</u> <i>Development</i> In my opinion the construction of a community centre on part of a Reserve for public recreation to the scale and intensity described in D(2) will have no greater impact on native title than could be built in accordance with the reservation purpose (such as sports stadium) <i>Uses</i> Similarly the permitted uses listed in D(1) will be either consistent with the reserve purpose or will have no greater impact than the impact that any act that could have been done under or in accordance with the reservation would have had. <i>Tenures</i> The issuing of leases, licenses, permits or other estates as listed in D(3) in my opinion will be either consistent with the reserve purpose or will have no greater impact than the impact that any act that could have been done under or in accordance with the reservation would have had <u>excepting</u> for the purposes of business operations, commercial premises, advertising (business) and storage (business) which in my opinion do not meet the good faith component of this requirement. This may be possible when the specific tenure documents are available.

G. Further Native Title Manager Advice

The OPPoM authorises leases, licenses, permits or other estates as listed in D(3).

Further native title manager advice will be required prior to issuing approval for future acts listed D(3) leases, licenses, permits or other estates for the purposes of business operations, commercial premises, advertising (business) and storage (business). In addressing the *Native Title Act* Council may need to utilise subdivision FA or negotiate an ILUA at that stage.

The OPPoM authorises easements to be approved subject to the provisions of the *Native Title Act 1993* and further crown land manager advice. In addressing the *Native Title Act* Council may need to utilise subdivision FA or negotiate an ILUA at that stage.

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H. Consequences

- (1) The acts are valid.
- (2) The OPPoM authorises the public works noted in D(2) (being the construction of a community centre) and Native title will be extinguished over the footprint and curtilage of the works.

A public work is defined as:

- (a) *any of the following that is constructed or established by or on behalf of the Crown, or a local government body or other statutory authority of the Crown, in any of its capacities:*
 - (i) *a building, or other structure (including a memorial), that is a fixture; or*
 - (ii) *a road, railway or bridge; or*
 - (iii) *where the expression is used in or for the purposes of Division 2 or 2A of Part 2--a stock-route; or*
 - (iv) *any major earthworks; or*
- (b) *a building that is constructed with the authority of the Crown, other than on a lease.*

Major earthworks are defined as:

earthworks (other than in the course of mining) whose construction causes major disturbance to the land, or to the bed or subsoil under waters.

- (3) In the event of a future native title determination where native title is found to exist native title holders may be entitled to compensation. Compensation will be payable by the State in respect of the works. Council may be liable to indemnify the State for such compensation.
- (4) Under Subdivision J of the future act provisions of the *Native Title Act 1993*, notification and the right to comment is required if the relevant act consists of the construction or establishment of a public work.

As the proposed act in (A) above involves the construction or establishment of a public work Council is required to notify and give the opportunity to comment to NTSCorp Limited as the representative aboriginal body for New South Wales under Section 24JB(6) of the *Native Title Act 1993*. In this regard notification was given on 15 November 2019 (see Tag E) and the notification period expired on 13 December 2019. No comments were received.

Tag A

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NEW SOUTH WALES GOVERNMENT GAZETTE No. 120 [23 OCTOBER, 1964]

said notification; and that the value of the improvements thereon which are the property of the Crown shall be the sum respectively set out in the said Schedule; and the interest to be paid on the whole or part of such sum shall be at the rate of £4 per centum per annum.

The Common Seal of The Water Conservation and Irrigation Commission was hereunto affixed by JOHN WILLIAM MURRAY, a Commissioner appointed under the Irrigation Act, 1912, as amended by subsequent Acts, in the presence of—

A. G. TYMAN,
Acting Secretary.

(S.S.)
JOHN W. MURRAY,
Commissioner.

SCHEDULE OF LANDS
CENTRAL DIVISION: COUNTY OF COOPER
WITHIN MIRROOL No. 1 IRRIGATION AREA; LAND DISTRICT OF
MIRROOL: SHIRE OF WADE

Portion 440, parish of Stanbridge; area 2 acres; purchase money in respect of Non-irrigable Purchase, £300; annual rental in respect of Non-irrigable Lease, £15; Crown improvements, weatherboard cottage, galvanised iron garage, laundry and fencing valued at £1,260; survey fee, £22; minimum deposit *, £187. Plan No. C 2,635-1,804.

* Minimum deposit to be lodged with each application includes the deposit on account of value of Crown improvements specified in the notification, full survey fee specified above and £5 which may be applied towards payment of rent or purchase money, as the case may be. The required amount of stamp duty must also be lodged with the application.

The holding is considered to be complete as regards provision for access and any further works of this class must be constructed at the expense of the holder and to the satisfaction of the Commission.

The holding does not carry any right to additional irrigable, non-irrigable or dry area lands.

The holding is at present occupied under special arrangement with the Commission.

Application forms may be obtained at the offices of the Commission at Sydney and Griffith.
(W.C. & I.C. 5. 61-1,015)

(9363) The Water Conservation and Irrigation Commission,
Sydney, 23rd October, 1964.

NOTIFICATION OF THE DETERMINATION OF
ANNUAL RENTAL, ETC., OF AN IRRIGATION
FARM LEASE THE AREA OF WHICH HAS BEEN
ALTERED BY THE SURRENDER OF PART THERE-
OF AND/OR ADDITION THERETO OF CROWN
LANDS

IN pursuance of the provisions of section 144a of the Crown Lands Consolidation Act, 1913, The Water Conservation and Irrigation Commission hereby notifies that, in consequence of the addition of Crown land to Irrigation Farm Lease No. 19 Buronga Irrigation Area, notified in the Government Gazette No. 118 of 16th October, 1964, the annual rental determined shall be £128 2s. 1d. and the date such rental commenced in respect of such lease shall be the 5th December, 1960. (W.C. & I.C. 64-367; C.C. 57-5,848)

The Common Seal of The Water Conservation and Irrigation Commission was hereunto affixed by JOHN WILLIAM MURRAY, a Commissioner appointed under the Irrigation Act, 1912, as amended by subsequent Acts, in the presence of—

A. G. TYMAN,
Acting Secretary.

(S.S.)
JOHN W. MURRAY,
Commissioner.

WATER ACT, 1912, AS AMENDED BY SUBSEQUENT
ACTS

BRINGRA IRRIGATION TRUST

ELECTION OF TRUSTEES.—Thursday, 12th November, 1964, has been appointed the date for the election of two Trustees of the abovesaid Trust, and the office of the Trust, Barham, the polling place. (64-8,348)

A. J. QUILTY, Secretary.

Water Conservation and Irrigation Commission,
Sydney, 30th September, 1964.
(9038)

Rural Bank of New South Wales, Sydney, 23rd October, 1964
FORFEITURE OF HOLDING WITHIN AN IRRIGATION
AREA

IT is hereby notified that the holding hereunder specified, together with all improvements (if any) on the land and all moneys paid in respect thereof, is declared forfeited in accordance with the provisions of section 147 (2) of the Crown Lands Consolidation Act, 1913, for the reason that default having been made in the payments of moneys for instalments of purchase money and interest has continued for over six months after the date when such moneys should have been paid. The forfeiture will take effect at the expiration of thirty (30) clear days from this date.

The Common Seal of the Rural Bank of New South Wales was hereunto affixed and this instrument was signed by the Commissioner whose signature is set opposite hereto (under and in pursuance of the power in that behalf delegated to him by resolution of the Commissioners) in the presence of—

P. G. HUXLEY,
Secretary.

E. T. CARROLL,
Commissioner.

Town Land Purchase Allotment 1, section 12, Darroze, containing 24 perches in the parish of Mourmang, county of Wentworth, Land District of Comaills; holder, Robert Alexander Gordon (14,167 L.A.) (9372)

(9362) Sydney, 23rd October, 1964.

RESERVE FROM SALE

IT is hereby notified, in pursuance of the provisions of section 28 of the Crown Lands Consolidation Act, 1913, that the Crown lands hereunder described shall be reserved from sale for the public purposes hereinafter specified, and they are hereby reserved accordingly.

A. G. ENTICKNAP, Minister for Conservation.

CENTRAL DIVISION

Within Mirrool No. 1 Irrigation Area; Land District of
Mirrool: Shire of Wade

FOR PUBLIC BATHS

Reserve No. 85,063 from sale. All that piece or parcel of land situated in the parish of Jondaryan, county of Cooper and State of New South Wales, being allotment 8, section 54, Town of Griffith, containing an area of 2 acres 1 rood 30 perches or thereabouts.

FOR PUBLIC RECREATION

Reserve No. 85,064 from sale. All those pieces or parcels of land situated in the parish of Jondaryan, county of Cooper and State of New South Wales, being allotments 19 and 20, section 7, allotments 5 and 7, section 54, Town of Griffith, containing in all an area of 2 acres 1 rood 34 perches or thereabouts. (W.C. & I.C. 64-438; M.I.A. 63-2,490)

IRRIGATION ACT, 1912, AS AMENDED

NOTIFICATION OF SPECIAL CHARGE FOR WATER SUPPLIED
DURING HOURS OF DAYLIGHT

IT is hereby notified that The Water Conservation and Irrigation Commission in accordance with the provisions of section 134 of the Irrigation Act, 1912, as amended, has determined that for the year which commenced on 1st July, 1964, and thereafter until otherwise determined by the Commission the special charge for water made available to any land within the Yanco No. 1 Irrigation Area solely during the hours of daylight shall be three shillings and ninepence per acre foot. (W.C. & I.C. 64-992)

Dated at Sydney, this twenty-ninth day of September, 1964.

A. J. QUILTY, Secretary.

(9070) The Water Conservation and Irrigation Commission.

WATER ACT, 1912-1964

THE Local Land Board for the Land District of Quirindi will, at 10 a.m. on Monday, 23rd November, 1964, at Court House, Quirindi, publicly inquire as to the desirability of granting the application by John Goodman for a license for two pumps on Conadilly or Mooki River, part reserve for access, village of Croons, parish Weston, county Pottinger. (64-3,322)

A. J. QUILTY, Secretary.

Water Conservation and Irrigation Commission,
Sydney, 21st October, 1964.
(9401)

21 MARCH 1975]

NEW SOUTH WALES GOVERNMENT GAZETTE No. 48

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108719 (now filed plan 408719) and being also the whole of the land in Certificates of Title, volume 7896, folio 243, having an area of 208 square metres or thereabouts.

Dated at Sydney this thirtieth day of October, 1974.

A. R. CUTLER, Governor.

By His Excellency's Command

(9107) E. A. WILLIS, Minister for Education.

NOTIFICATION OF ACQUISITION OF LAND UNDER THE PUBLIC WORKS ACT 1912, AS AMENDED BY SUBSEQUENT ACTS

SO much of the land hereunder described as is Crown land has been appropriated and so much thereof as is private property has been resumed for a certain authorized work, viz. the construction of a dam across the Peel River about 43 kilometres southeast of the city of Tamworth and works incidental thereto, and is vested in The Water Conservation and Irrigation Commission as Constructing Authority for the purposes of the Public Works Act, 1912, as amended by subsequent Acts.

Dated this twelfth day of March, 1975.

L. W. STREET, Lieutenant-Governor.

By His Excellency's Command,

L. A. PUNCH, Minister for Public Works and Ports.

Land District—Tamworth; Shire—Nundle

All that piece or parcel of land situated in the County of Parry and State of New South Wales being lot 8 shown on Filed Plan 37282 being also the whole of the land comprised in Conveyance registered Number 341 Book 3149 containing an area of 420 hectares or thereabouts exclusive of road and said to be in the possession of Pick Hill Pty Limited.

(Papers W.C. and L.C. 74-14120.) (9280)

LAND ACQUISITION (CHARITABLE INSTITUTIONS) ACT, 1946

THE UNIVERSITY OF NEW SOUTH WALES

PURSUANT to section 3 (1) of the Land Acquisition (Charitable Institutions) Act, 1946, His Excellency the Lieutenant-Governor, acting with the advice of the Executive Council, hereby declares The University of New South Wales to be an institution for the purposes of the said Act.

Dated at Sydney, this twelfth day of March, 1975.

L. W. STREET, Lieutenant-Governor.

By His Excellency's Command,

(9277) L. A. PUNCH, Minister for Public Works.

(9349) New South Wales State Fisheries.
Sydney, 27th February, 1975.

FISHERIES AND OYSTER FARMS ACT, 1935

NOTICE OF CANCELLATION AND FORFEITURE OF OYSTER FARM LEASE

IT is hereby notified that in accordance with the provisions of section 79 of the Fisheries and Oyster Farms Act, 1935, Oyster Farm Lease No. 70-75 of 59.4 metres frontage at MANNING RIVER, held by William Joseph Richardson of 50 Princess Street, Cundletown, is cancelled and forfeited as from 13th September, 1974.

M. A. MORRIS, Minister for Lands and Forests.

SYDNEY FARM PRODUCE MARKET AUTHORITY ACT, 1968

LOANS TO THE SYDNEY FARM PRODUCE MARKET AUTHORITY IN accordance with the approval of His Excellency the Governor, with the advice of the Executive Council, and in pursuance of the provisions of the Sydney Farm Produce Market Authority Act, 1968, the Sydney Farm Produce Market Authority has been authorized to raise loans for the following:

\$500,000 from the Grain Elevators Board of N.S.W.

\$300,000 from the N.S.W. Department of Main Roads.

\$975,000 from the Bank of New South Wales Savings Bank.

Dated at Sydney, this nineteenth day of February, 1975.

(9200) G. R. CRAWFORD, Minister for Agriculture.

MEAT INDUSTRY ACT, 1915

LOAN TO THE METROPOLITAN MEAT INDUSTRY BOARD

IN accordance with the approval of His Excellency the Governor, with the advice of the Executive Council and in pursuance of the provisions of the Meat Industry Act, 1915, the Metropolitan Meat Industry Board has been authorized to raise the following loan:

\$1,000,000 from the Government Insurance Office of New South Wales.

Dated at Sydney, this nineteenth day of February, 1975.

(9202) G. R. CRAWFORD, Minister for Agriculture.

GROWTH CENTRES (LAND ACQUISITION) ACT, 1974

NOTIFICATION UNDER SECTION 4 (1)

I, the Minister for Decentralisation and Development, do, by this my notification, declare—

- (a) in pursuance of section 4 (1) of the Growth Centres (Land Acquisition) Act, 1974, that the land described in the Schedule, being part of growth centre land is designated land for the purposes of the said Act; and
- (b) in pursuance of section 5 of the said Act that the base date, in relation to the said land, shall be effective for a further period of 5 years. (A 1/13/1 Pt 2)

I. C. BRUXNER,

Minister for Decentralisation and Development.

Sydney, 21st March, 1975.

SCHEDULE

All those pieces or parcels of land situate in the County of Cumberland, Parishes of Manangle and Appin, being the whole of the land coloured pink on map catalogued No. GC 75/1 in the office of the New South Wales Planning and Environment Commission and also all those pieces or parcels of land situate in the County of Cumberland, Parish of Narrellan and County of Camden, Parish of Camden being the whole of the land coloured pink on map catalogued No. GC 75/2 in the office of the New South Wales Planning and Environment Commission and also all those pieces or parcels of land situate in the County of Cumberland, Parish of Appin and County of Camden, Parish of Camden being the whole of the land coloured pink on map catalogued No. GC 75/3 in the office of the New South Wales Planning and Environment Commission. (9181)

(9415) Sydney, 21st March, 1975.

REVOCATION OF PART OF RESERVE FROM SALE

IT is hereby notified under the provisions of section 30 of the Crown Lands Consolidation Act, 1913, that the part of the Reserve from Sale hereunder described is hereby revoked.

L. A. PUNCH, Minister for Public Works and Ports.

FOR PUBLIC RECREATION

CENTRAL DIVISION

Land District of Mirrool; Mirrool No. 1 Irrigation Area,
Shire of Wade

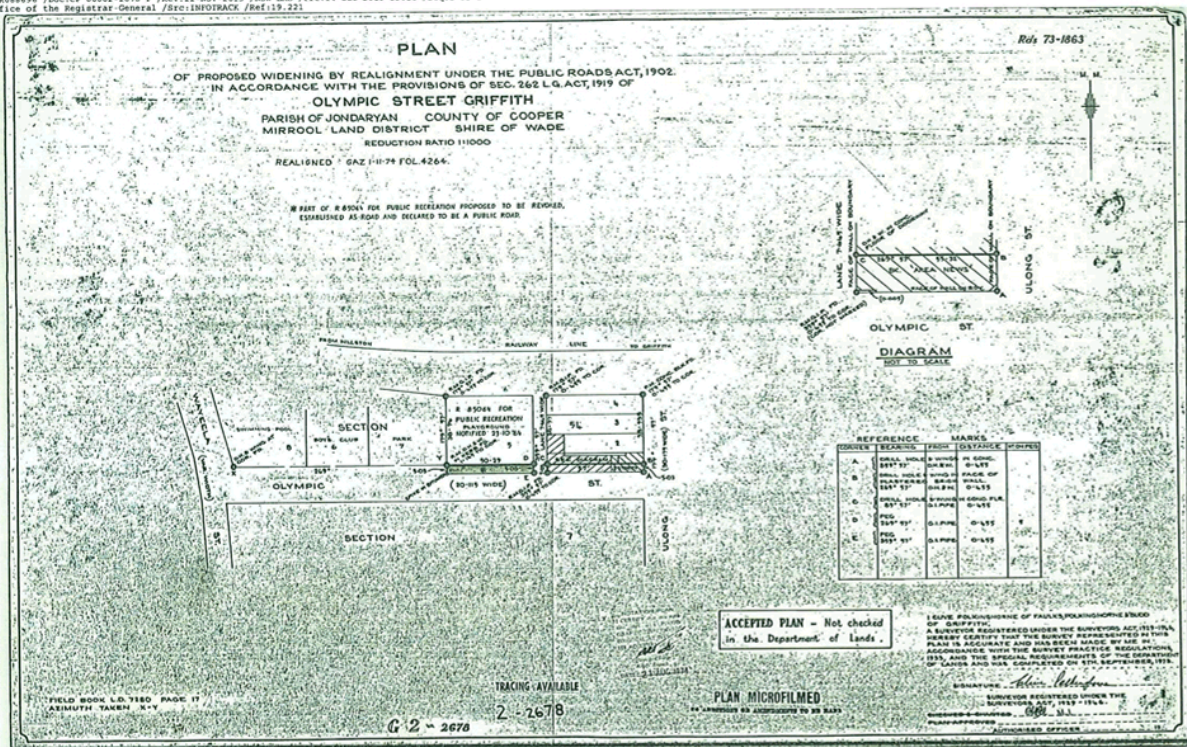
All that piece or parcel of land situated in the Parish of Jondaryan, County of Cooper and State of New South Wales, being part of Reserve No. 85064 from Sale for Public Recreation notified in the Government Gazette of 23rd October, 1964, being that part of allotment 5, section 54, Town of Griffith, containing an area of 253 square metres or thereabouts shown coloured brown on plan catalogued G. 2-2678 in the office of the Department of Lands, Sydney. (W.C. & I.C. 73-397, M.I.A. 73-C. 6053)

(9416) Sydney, 21st March, 1975.

NOTIFICATION OF THE SALE BY TENDER OF CROWN LAND WITHIN THE YANCO No. 1 IRRIGATION AREA AS A NON-IRRIGABLE PURCHASE OR NON-IRRIGABLE LEASE

IN pursuance of the provisions of the Crown Lands Consolidation Act, 1913, and the Acts amending the same, and of the Irrigation Act, 1912, as amended by subsequent Acts, I, the Minister for Public Works and Ports, do hereby notify that the land described in the Schedule of Land hereto is available for sale by tender by The Water Conservation and Irrigation Commission (hereinafter called the Commission) by way of purchase in fee simple as a Non-irrigable Purchase or Lease in Perpetuity as a Non-irrigable Lease subject to the provisions of the said Acts and the Regulations thereunder, the provisions hereinafter contained, and the conditions in the Schedule of Special Conditions hereto.

Reg:R088696 /Doc:CP 00002-2678 P /Rev:22-Nov-2013 /NSW LMS /Ext:14-Oct-2019 13:10 /Seq:1 of 1
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15 July 2011

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GRIFFITH OFFICE
2nd Floor, Griffith City Plaza,
120–130 Banna Avenue (PO Box 1030), Griffith NSW 2680
Phone: (02) 6960 3600 Fax: (02) 6962 5670

CROWN LANDS ACT 1989**ORDER**

Authorisation of Additional Purpose under S121A

PURSUANT to section 121A of the Crown Lands Act 1989, I authorise by this Order, the purpose specified in Column 1 to be an additional purpose to the declared purpose of the reserves specified opposite thereto in Column 2 of the Schedules.

KATRINA HODGKINSON, M.P.,
Minister for Primary Industries

SCHEDULE 1

<i>Column 1</i>	<i>Column 2</i>
Community purposes (Part – Lot 5, section 54, DP 758476, Olympic Street, Griffith).	Reserve No.: 85064. Public Purpose: Public recreation. Notified: 23 October 1964. File No.: 11/04049.

SCHEDULE 2

<i>Column 1</i>	<i>Column 2</i>
Urban Services.	Reserve No.: 1005048. Public Purpose: Access. Notified: 12 September 2003. File No.: 08/7409.

GRIFFITH OFFICE

Department of Conservation and Land Management
Level 2, Griffith City Plaza, 120-130 Banna Avenue, Griffith, N.S.W. 2680
Phone: (069) 62 7522; Fax: (069) 62 5670

ESTABLISHMENT OF A RESERVE TRUST AND APPOINTMENT OF TRUST MANAGER

- (1) PURSUANT to section 92 (3) of the Crown Lands Act 1989, the reserve trust which is the trustee of a reserve specified in Column 1 of the Schedule at the date hereof is dissolved.
- (2) PURSUANT to section 92 (1) of the Crown Lands Act 1989, the reserve trust specified in Column 2 of the Schedule is established under the name stated in that column and is appointed as trustee of the reserves specified in Column 1 of the Schedule.
- (3) PURSUANT to section 95 of the Crown Lands Act 1989, the Corporation specified in Column 3 of the Schedule is appointed to manage the affairs of the reserve trust specified in Column 2.

GEORGE SOURIS, M.P.
 Minister for Land and Water Conservation.

SCHEDULE**COLUMN 1**

Reserve 66466 at Beelbangera for the purpose of public recreation, notified in the *Government Gazette* of 11th December 1936.

Reserve 159000 at Griffith for the purpose of community purposes, notified in the *Government Gazette* of 28th April 1989.

Reserve 159007 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 25th October 1991 (name of reserve trust: Vaughan Park Recreation Trust).

Reserve 159009 at Griffith for the purpose of urban services, notified in the *Government Gazette* of 14th February 1992 (name of reserve trust: Government Offices Drainage Reserve Trust).

Reserve 159010 at Griffith for the purpose of urban services, notified in the *Government Gazette* of 14th February 1992 (name of reserve trust: Merrigal Street, Elder Road Access and Drainage Reserve Trust).

Reserve 159011 at Griffith for the purpose of urban services, notified in the *Government Gazette* of 5th June 1992 (name of reserve trust: Griffith City Drainage and Access Reserve Trust No. 1).

Reserve 159017 at Griffith for the purpose of environmental protection, notified in the *Government Gazette* of 18th March 1994 (name of reserve trust: Jack Carson Flora and Fauna Park Trust).

Reserve 240001 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 3rd April 1987.

Reserve 240002 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 3rd April 1987.

Reserve 240003 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 3rd April 1987.

Reserve 240004 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 3rd April 1987.

Reserve 240005 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 8th January 1988.

Reserve 240007 at Griffith for the purpose of community purposes, notified in the *Government Gazette* of 15th July 1988.

Reserve 240008 at Griffith for the purpose of drainage, notified in the *Government Gazette* of 7th October 1988.

Dedication No. R.559033 at Griffith for the purposes of water supply and reservoir, notified in the *Government Gazette* of 16th June 1944.

Reserve 61588 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 29th November 1929.

Reserve 61708 at Griffith for the purposes of sanitary depot and rubbish depot, notified in the *Government Gazette* of 28th February 1930.

Reserve 66750 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 28th May 1937.

Reserve 71903 at Griffith for the purpose of public recreation and public park, notified in the *Government Gazette* of 3rd May 1946.

Reserve 71914 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 10th May 1946.

Reserve 72195 at Griffith for the purpose of public recreation and public park, notified in the *Government Gazette* of 27th February 1947.

Reserve 74539 at Griffith for the purpose of public recreation and parking, notified in the *Government Gazette* of 26th October 1951.

Reserve 74541 at Griffith for the purpose of water supply and municipal purposes, notified in the *Government Gazette* of 26th October 1951.

Reserve 74741 at Griffith for the purpose of children's playground, notified in the *Government Gazette* of 15th February 1952.

Reserve 75878 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 15th May 1953.

Reserve 78167 at Griffith for the purpose of homes for the aged, notified in the *Government Gazette* of 9th December 1955.

Reserve 78173 at Griffith for the purpose of public park and children's playground, notified in the *Government Gazette* of 16th December 1955.

Reserve 78175 at Griffith for the purpose of public park and children's playground, notified in the *Government Gazette* of 16th December 1955.

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Reserve 81439 at Griffith for the purpose of public park and public recreation, notified in the *Government Gazette* of 27th February 1959.

Reserve 81848 at Griffith for the purpose of day nursery, notified in the *Government Gazette* of 7th August 1959.

Reserve 82326 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 29th January 1960.

Reserve 82722 at Griffith for the purpose of parking, notified in the *Government Gazette* of 29th July 1960.

Reserve 83029 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 3rd February 1961.

Reserve 83521 at Griffith for the purpose of public recreation and parking, notified in the *Government Gazette* of 20th October 1961.

Reserve 85013 at Griffith for the purpose of public recreation and public park, notified in the *Government Gazette* of 18th September 1964.

Reserve 85063 at Griffith for the purpose of public baths, notified in the *Government Gazette* of 23rd October 1964.

Reserve 85064 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 23rd October 1964.

Reserve 86215 at Griffith for the purpose of public recreation and public park, notified in the *Government Gazette* of 14th April 1967.

Reserve 86439 at Griffith for the purpose of water supply, notified in the *Government Gazette* of 16th February 1968.

Reserve 87010 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 21st February 1969.

Reserve 87129 at Griffith for the purpose of promotion of the study and conservation of native flora and fauna museum and botanic gardens, notified in the *Government Gazette* of 3rd April 1969.

Reserve 89766 at Griffith for the purpose of children's playground, notified in the *Government Gazette* of 30th April 1976.

Reserve 90788 at Griffith for the purpose of caravan and camping park, notified in the *Government Gazette* of 10th June 1977.

Reserve 90869 at Griffith for the purpose of public park, notified in the *Government Gazette* of 2nd September 1979.

Reserve 90942 at Griffith for the purpose of public park, notified in the *Government Gazette* of 4th November 1977.

Reserve 94336 at Griffith for the purpose of day nursery, notified in the *Government Gazette* of 13th March 1981.

Reserve 95530 at Griffith for the purpose of public park, notified in the *Government Gazette* of 28th August 1981.

Reserve 98002 at Griffith for the purpose of water supply, notified in the *Government Gazette* of 3rd January 1986.

Reserve 66106 at Hanwood for the purpose of public recreation, notified in the *Government Gazette* of 10th July 1936.

Reserve 96428 at Hanwood for the purpose of public hall, notified in the *Government Gazette* of 3rd December 1982.

Reserve 96429 at Hanwood for the purpose of public recreation, notified in the *Government Gazette* of 3rd December 1982.

Reserve 52849 at Hanwood for the purpose of preservation of graves, notified in the *Government Gazette* of 21st June 1918.

Dedication No. 559030 at Griffith for the purpose of general cemetery, notified in the *Government Gazette* of 17th September 1920.

Reserve 56353 at Griffith for the purpose of preservation and growth of timber, notified in the *Government Gazette* of 31st August 1923.

Reserve 59306 at Griffith for the purpose of sewerage, notified in the *Government Gazette* of 12th November 1926.

Dedication No. 559031 at Yenda for the purpose of general cemetery, notified in the *Government Gazette* of 14th October 1923.

Reserve 88914 at Yenda for the purpose of public recreation, kindergarten and children's playground, notified in the *Government Gazette* of 11th May 1973.

Reserve 64662 at Tharbogang for the purpose of public recreation, notified in the *Government Gazette* of 20th July 1934.

Reserve 83715 at Tharbogang for the purpose of public recreation, notified in the *Government Gazette* of 26th January 1962.

Reserve 97172 at Tharbogang for the purpose of rubbish depot and local government purposes, notified in the *Government Gazette* of 16th March 1984.

Reserve 72519 at Beelbanger for the purpose of public recreation and children's playground, notified in the *Government Gazette* of 14th November 1947.

Reserve 68333 at Beelbanger for the purpose of rubbish depot, notified in the *Government Gazette* of 19th May 1939.

Reserve 159005 at Yenda for the purpose of public recreation, notified in the *Government Gazette* of 25th October 1991 (name of reserve trust: Yenda Equestrian Park Trust).

Reserve 159006 at Yenda for the purpose of environmental protection, notified in the *Government Gazette* of 25th October 1991 (name of reserve trust: Yenda Flora and Fauna Park Trust).

Reserve 159008 at Yenda for the purpose of public recreation, notified in the *Government Gazette* of 21st February 1992 (name of reserve trust: Cyril Morris Park Recreation Trust).

Reserve 240000 at Yenda for the purpose of charitable organisations, notified in the *Government Gazette* of 1st August 1986 (name of reserve trust: Yenda Retirement Village Trust).

Reserve 61951 at Yenda for the purpose of public recreation, notified in the *Government Gazette* of 4th July 1930.

Reserve 62949 at Yenda for the purpose of public park, notified in the *Government Gazette* of 25th September 1931.

NEW SOUTH WALES GOVERNMENT GAZETTE No. 170

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OFFICIAL NOTICES

16 December 1994

Reserve 64939 at Yenda for the purpose of municipal purposes, notified in the *Government Gazette* of 30th November 1934.

Reserve 55908 at Yoogali for the purpose of public recreation, notified in the *Government Gazette* of 15th December 1922.

Reserve 93898 at Yoogali for the purpose of public park, notified in the *Government Gazette* of 31st October 1980.

Reserve 64911 at Wumbulgal for the purpose of public recreation, notified in the *Government Gazette* of 9th November 1934.

Reserve 78056 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 4th November 1955.

Dedication No. 559035 at Griffith for the purpose of public recreation and parking, notified in the *Government Gazette* of 21st March 1952.

Dedication No. 559039 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 21st September 1962.

Dedication No. 559037 at Griffith the purpose of public recreation, notified in the *Government Gazette* of 20th July 1962.

Reserve 77295 at Griffith for the purpose of children's playground, notified in the *Government Gazette* of 26th August 1955.

Reserve 83394 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 11th August 1961.

Reserve 83395 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 11th August 1961.

Reserve 83396 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 11th August 1961.

Reserve 86857 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 27th September 1968.

Reserve 88209 at Griffith for the purpose of charitable organisations, notified in the *Government Gazette* of 28th May 1971.

Reserve 88420 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 17th December 1971.

Reserve 79782 at Griffith for the purpose of public recreation, notified in the *Government Gazette* of 9th August 1957.

Reserve 59306 at Griffith for the purpose of sewerage, notified in the *Government Gazette* of 12th November 1926.

Reserve 65432 at Griffith for the purpose of camping, notified in the *Government Gazette* of 23rd August 1938.

COLUMN 2

Griffith City Council Crown Reserves Reserve Trust.

COLUMN 3

Griffith City Council.

ESTABLISHMENT OF A RESERVE TRUST AND APPOINTMENT OF TRUST MANAGER

(1) PURSUANT to section 92 (3) of the Crown Lands Act 1989, the reserve trust which is the trustee of a reserve specified in Column 1 of the Schedule at the date hereof is dissolved.

(2) PURSUANT to section 92 (1) of the Crown Lands Act 1989, the reserve trust specified in Column 2 of the Schedule is established under the name stated in that column and is appointed as trustee of the reserves specified in Column 1 of the Schedule.

(3) PURSUANT to section 95 of the Crown Lands Act 1989, the Corporation specified in Column 3 of the Schedule is appointed to manage the affairs of the reserve trust specified in Column 2.

GEORGE SOURIS, M.P.

Minister for Land and Water Conservation.

SCHEDULE

COLUMN 1

Reserve 82278 at Darlington Point for the purpose of rubbish depot, notified in the *Government Gazette* of 15th January 1960.

Reserve 60373 at Darlington Point for the purpose of public recreation, notified in the *Government Gazette* of 30th March 1928.

Reserve 97198 at Darlington Point for the purpose of public recreation and children's playground, notified in the *Government Gazette* of 16th March 1984.

Reserve 82340 at Darlington Point for the purpose of public recreation, notified in the *Government Gazette* of 5th February 1960.

Reserve 97197 at Darlington Point for the purpose of public recreation and children's playground, notified in the *Government Gazette* of 16th March 1984.

Reserve 94084 at Darlington Point for the purpose of public recreation and children's playground, notified in the *Government Gazette* of 19th December 1980.

Reserve 88754 at Darlington Point for the purpose of public recreation, notified in the *Government Gazette* of 3rd November 1972.

Reserve 88058 at Darlington Point for the purpose of museum, notified in the *Government Gazette* of 18th December 1970.

Reserve 75491 at Darlington Point for the purpose of public recreation and children's playground, notified in the *Government Gazette* of 5th December 1952.

Reserve 68938 at Waddi for the purpose of public recreation, notified in the *Government Gazette* of 5th January 1940.

COLUMN 2

Murrumbidgee Shire Council Crown Reserves Reserve Trust.

COLUMN 3

Murrumbidgee Shire Council.

NEW SOUTH WALES GOVERNMENT GAZETTE No. 170

Tag E



ABN : 11 607 533 862

The Notifications Officer
NTSCORP Pty Ltd
PO Box 2105
STRAWBERRY HILLS NSW 2012

Our Ref : 20.153
18 November 2019

via email: information@ntscorp.com.au

Notice under the Native Title Act 1993

To: NTSCORP Pty Ltd	
Date of Issue	18 November 2019
Section of the Native Title Act	Section 24JB (6)
Council	Griffith City Council
Contact Name	Craig Barnes Director – Lands Advisory Services Pty Ltd
Email	craig.barnes@landsas.com.au
Telephone Number	0428 474 542
Facsimile Number	02 4925 2570
Reference Number	19.221

Griffith City Council in its role as a crown land manager has proposed the following for approval:

Type of Approval	Approval for the construction of: - a new, accessible, double storey, fit for purpose, multifunction centre and associated infrastructure works. - required car parking to service the centre and the adjoining recreation reserve. - associated landscaping. over Reserve 85064 being at Olympic Park, Griffith
Under what State act	<i>Local Government Act 1993</i> <i>Environmental Planning and Assessment Act 1979</i>

The approval, if granted, will permit the following activity to happen:

Nature of Activity	- Construction of Public facilities in the reserve noted in the “type of approval” section. - Ongoing operation, use, maintenance and repair of these facilities that are to be operated for the general public.
Location of Activity	Olympic Street, Griffith on Lot 5 Section 54 in Deposited Plan (DP) 758476.
Maps / Plans	Please see attached at Appendix A the relevant Crown Plan and a location diagram of the proposed facilities.
Name of registered native title claimant group	Nil

Lands Advisory Services Pty Ltd
PO Box 2317, Dangar, NSW, 2309
E : craig.barnes@landsas.com.au T : 0428 474 542



Name of native title representative body	NTSCORP Pty Ltd
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The activity, if approved, will commence only after notification and consideration of all comments. In addition, if approved, the activity will be approved on an ongoing basis. You are invited to comment upon the proposed future act outlined above.

Any comments must be in writing and must be received no later than **16 December 2019**.

Please send your comments to:

Craig Barnes
Director - Lands Advisory Services Pty Ltd
PO Box 2317
DANGAR NSW 2309

Or by email to craig.barnes@landsas.com.au

Kind Regards



Craig Barnes
Managing Director

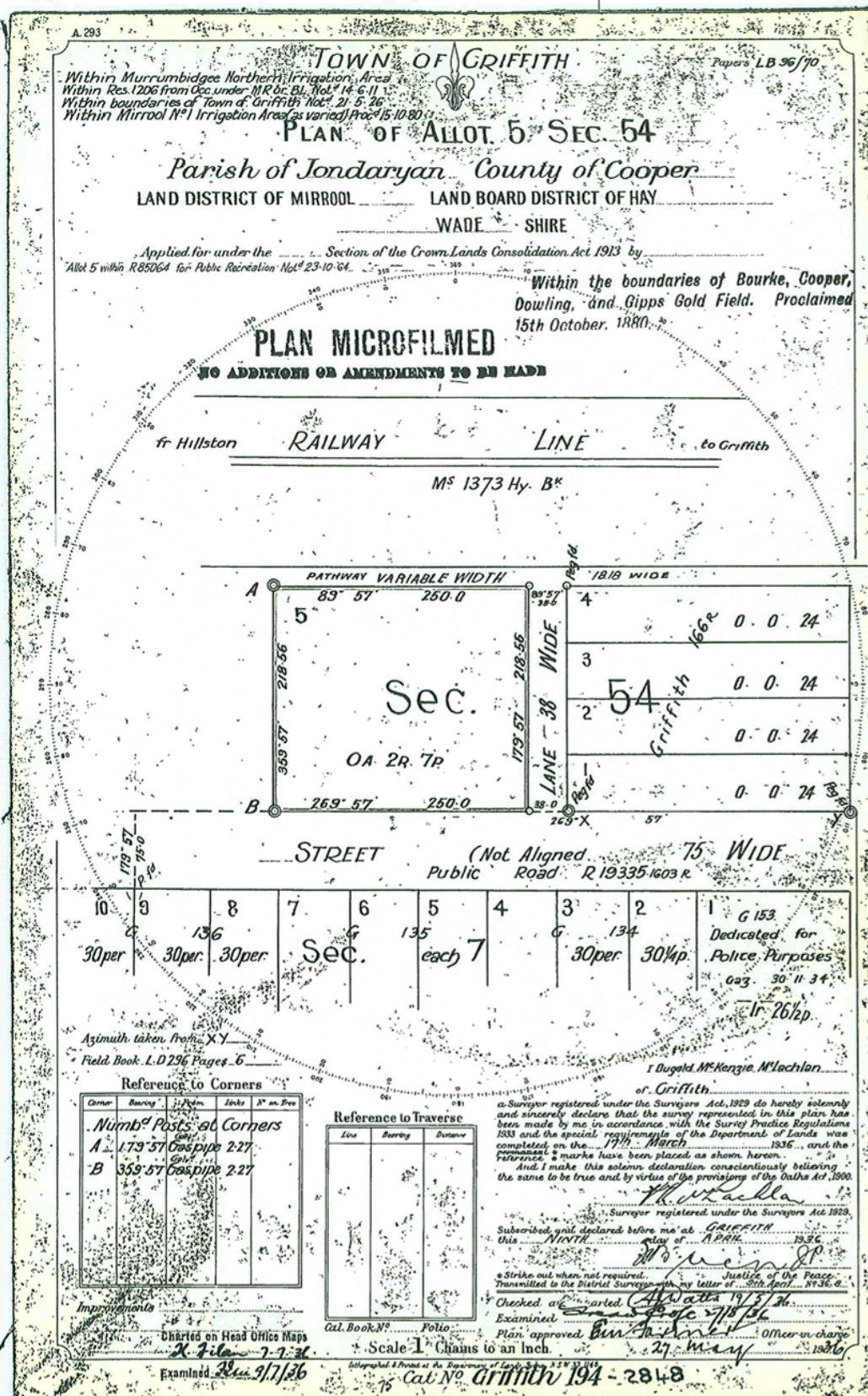
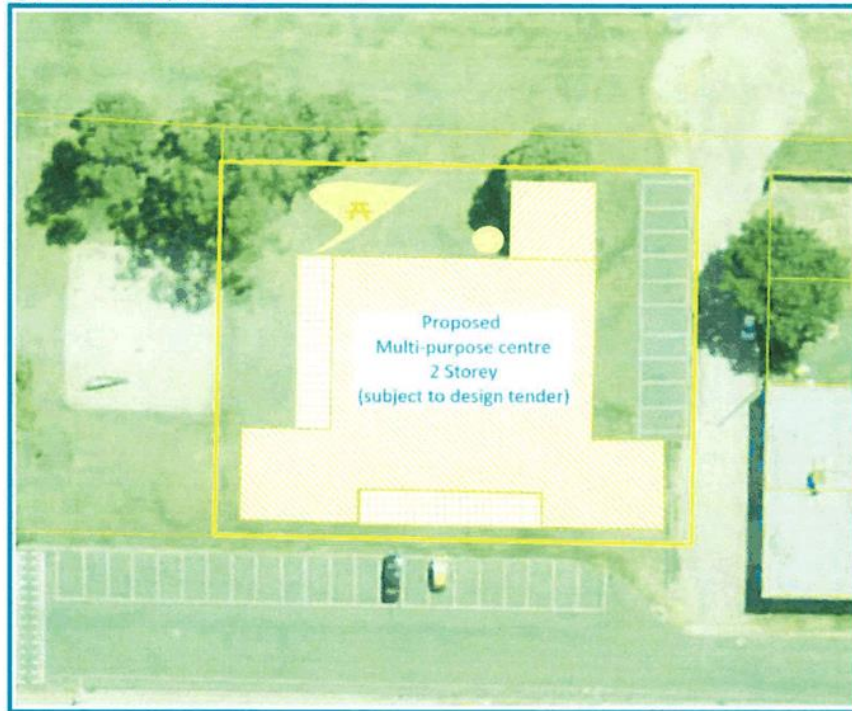




Figure 5 - Planned Improvements



Future improvements to the Reserve (see Figure 5 for anticipated site coverage and Figure 6 for artist's impression) will include:

- The construction of a new, accessible, double storey, fit for purpose, multifunction centre and associated infrastructure works aimed at accommodating the services described in Section 11.1.
- Required car parking to service the centre and the adjoining recreation reserve.
- Associated landscaping.

Where it is proposed to construct or establish a public work¹⁰ on reserved or dedicated Crown land,